

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

Preparation of the 11th Consultation

Combating discrimination in education

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST DISCRIMINATION IN EDUCATION

1. Introduction

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 Agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

2. SCOPE OF THE CONSULTATION

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**¹ (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**², which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**³, and the **Report on the 2022 Transforming Education Summit**⁴ which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education⁵ and the Tashkent Declaration on Early Childhood Care and Education.⁶

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO’s Constitution states that “*Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4*”. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

¹ <https://www.unesco.org/en/right-education/evolving>

² <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

³ https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf

⁴ https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf

⁵ [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

⁶ [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration-ecce-2022)

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavour. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**⁷ in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**⁸, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database⁹. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

5. Modalities and structure

The Guidelines are structured around three chapters:

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.

⁷ <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

⁸ <https://en.unesco.org/education/girls-women-rights>

⁹ [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

GENERAL INFORMATION:

Country name: Montenegro

Organization or entity responsible for the preparation of the report: Ministry of Education, Science and Innovation

Name of contact person: Ms Milena Roganovic

Email and telephone number of contact person: milena.roganovic@mp.edu.me, +0038220405307

I. Ratification and applicability of the Convention against Discrimination in Education¹⁰

- Is your country a State Party to the Convention?

☒ Yes

☐ No: Does your country plan to ratify this instrument?

☐ Yes: Please indicate the stage of ratification process reached by your country and whether assistance is needed:

☐ There is interest but no concrete action has been taken

☐ The ratification process has been initiated

☐ The ratification process is close to completion

- Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☒ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?¹¹

☐ No

¹⁰ <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

¹¹ Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☒ Yes: Have the provisions of the Convention been invoked?

☒ Yes ☐ No

- Please cite the case law and jurisprudence.

Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.

Ministry of Education, Science and Innovation of Montenegro is responsible for creating and managing education policies, administration and development of education, as well as work organization of education institutions. **The Bureau for Education Services** provides advisory and research, teacher professional development services, and quality assurance of education, working to continuously improving and implementing education reforms in Montenegrin education system. **The Centre for Vocational Education** provides advisory, research, professional development and quality assurance services for the development and improvement of the vocational education system, adult education and lifelong learning opportunities as well as support to nonformal and informal education in Montenegro. **The Ministry of Justice** handles legal matters related to education and ensures enforcement of anti-discrimination laws. **Ombudsman (Protector of Human Rights and Freedoms)** addresses complaints and ensures protection of human rights, including the right to education and non-discrimination¹². **Judiciary (courts)** handle disputes and legal issues related to education rights and discrimination. **Education inspection** in the Ministry of Education, Science and Innovation monitors compliance with education standards and regulations, including anti-discrimination policies. **The National Council for Education** is the advisory body responsible for providing guidance on educational standards, policies, and reforms, including measures against discrimination. **Ministry of Human and Minority Rights** focuses on promoting and protecting human and minority rights, including combating discrimination in education. These authorities work collaboratively to ensure that the right to education is upheld and that discrimination in education is effectively addressed in Montenegro. **The Office for Sustainable Development of the General Secretariat of the Government** provides secretariat services to the **National Council for Sustainable Development**, which is a government advisory body in charge of providing guidance for designing and implementing public policies and projects which incorporate the principles of sustainable development (the Council is formed in 2002 in the eve of the World Summit on Sustainable Development in Johannesburg).

II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

1. Towards an inclusive non-discriminatory education system

For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.

¹²

Please note that the comments of the Protector for the Human Rights and Freedom (Ombudsman) in this questionnaire are drawn from individual cases the subject of the examination procedures either initiated by the Protector or the cases based on the complaints by third parties.

It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.¹³

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

☒ Yes ☐ No

- If yes, please provide reference:

Following the proclamation of independence on 3 June 2006, and with the adoption of the Constitution of Montenegro on 22 October 2007, Montenegro became independent and sovereign state, of republican form of governmental rule. As stated in the Constitution, Montenegro is also a civic, democratic, ecological and state of social justice, based on the rule of law (**Article 1 of the Constitution**).

Article 9 of the Constitution of Montenegro states that the confirmed and published international treaties and generally accepted rules of international law are an integral part of the internal legal order, they have primacy over domestic legislation and are directly applied when they regulate relations differently from internal legislation. On 23 October 2006 Montenegro by order of succession ratified the top-level UN treaties such as the International Covenant on Civil and Political Rights (ICCPR), Convention on the Rights of the Child (CRC). **Montenegro ratified the UN Convention against Discrimination in Education on 26 April 2007 by notification of succession.** Similarly, Montenegro ratified the Convention on the Rights of Persons with Disabilities (CRPD) in 2009, Convention on the Prohibition of Discrimination in 2009, International Convention on the Elimination of All Forms of Racial Discrimination (CERD), the International Covenant on Economic, Social and Cultural Rights (ICESCR), Convention against Torture and Other Cruel, Inhuman or Degrading Treatment or Punishment (CAT), Convention for the Protection of All Persons from Enforced Disappearance (CED), Convention on the Elimination of All Forms of Discrimination Against Women (CEDAW).

The rights and principles of the Convention/Recommendation against Discrimination in Education from 1960 **are reflected in the main national legislation and education laws**, namely, as part of the Constitution of Montenegro, the General Law on Education, Law on Preschool Education, Law on Primary Education, Law on General Secondary Education, Law on Vocational Education, Law on Higher Education, Law on the Education of Children with Special Education Needs, the Law on Minority Rights and Freedoms, the Law on Social and Child Protection, the Family Law, the Law on Prohibition of Discrimination, the Law on Prohibition of Discrimination against Persons with Disabilities. These rights and principles are the guiding principles of the key education, multisectoral strategic and reform frameworks, and especially the strategies which deal with the rights of the vulnerable and sensitive groups of population (i.e. national minorities, persons with special needs, woman, elderly, beneficiaries of state material support, migrants). Also, in the Strategy for the Development of the Inclusive Education (2019-2025), the Strategy of the Development of Higher Education of Montenegro (2024-2027), and the Reform Initiatives for the Development and the Adoption of a Ten-year Strategy for Education Reform (2025–2035)¹⁴.

In April 2024, the Government of Montenegro signed **the Declaration on Children, Youth and Climate Change** as a response to the growing and unique impact of the climate crisis on children. The Declaration was created as part of the COP25 in Madrid, with the aim of strengthening the participation of young people in the climate crisis, as well as making the policies implemented more focused on children and young people. The main global partner in the implementation of the Declaration is UNICEF. In April 2024,

¹³ Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

¹⁴ <https://www.unicef.org/montenegro/media/22586/file/ESA%20-%20CG%20verzija.pdf>

by signing the Declaration, Montenegro committed itself to actively work with children and young people to identify and undertake actions that will provide future generations with a clean, healthy and sustainable environment. Preparation of an implementation plan is underway, which includes accelerating the implementation of inclusive climate policies and actions tailored to the child, at the national and global level¹⁵.

1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation¹⁶, and ensure equal access to all levels and types of education (please tick all that apply):

For reference: This notably is covered under SDG target 4.1 and partly target 4.b¹⁷

☒ Legal texts¹⁸ prohibit discrimination and guarantee equal access to education:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

☒ In higher education

☒ In adult education and alternative learning

- Please indicate the relevant legal provisions:

The Constitution of Montenegro in Article 79 guarantees broad human rights and freedoms to persons belonging to minority nations and other minority national communities. With respect to education, amongst other rights, the following rights are guaranteed by the Constitution: the right to use their own language and alphabet in private, public and official use; the right to education in their own language and alphabet in public institutions and the right to have included in the curricula the history and culture of the persons belonging to minority nations and other minority national communities; the right to establish educational, cultural and religious associations, with the material support of the State; the right to write and use their own name and surname also in their own language and alphabet in official documents.

Also, **Article 80 of the Constitution** states that forceful assimilation of the persons belonging to minority nations and other minority national communities shall be prohibited and the obligation of the state to protect the persons belonging to minority nations and other minority national communities from all forms of forceful assimilation.

¹⁵ The Draft Report on "The overview of progress in the implementation of the Statement of Montenegro's commitment to the implementation of the Sustainable Development Goals" is prepared by the national Office for Sustainable Development of the General Secretariat of the Government. The Statement on Montenegro's commitment to the implementation of the Sustainable Development Goals was adopted by the Government in 2023 on the occasion of intensifying the efforts of United Nations (UN) members to accelerate the process of achieving the Sustainable Development Goals (SDGs). Montenegro is one of the 33 members of the United Nations that adopted the Declaration at the to the United Nations Assembly in September 2023 and part of the statement at the SDG Summit.

¹⁶ See: Article/Paragraph 1(1).

¹⁷ Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

¹⁸ Constitution, laws, decrees, regulations, circulars, etc.

The Criminal Code of Montenegro ("Official Gazette of the Republic of Montenegro", no. 70/2003, 13/2004 - corrected and 47/2006 and "Official Gazette of the Republic of Montenegro", no. 40/2008, 25/2010, 32/2011, 64/2011 – other law, 40/2013, 56/2013 - amended, 14/2015, 42/2015, 58/2015 – other law, 44/2017, 49/2018 and 3/2020), in **Article 159 on Violation of Equality** prescribes the following:

(1) Who, because of national or ethnic affiliation, race or religion or because of the absence of such affiliation or because of differences in terms of political or other beliefs, gender, language, education, social position, social origin, sexual orientation, gender identity, disability, property state or some other personal characteristic, denies or limits human rights and freedoms established by the Constitution, laws or other regulations or general acts or confirmed international treaties, or gives him privileges or benefits based on this difference, shall be punished by imprisonment for up to three years.

(2) If the offense referred to in paragraph 1 of this Article is committed because of hatred towards a member of a group determined on the basis of race, skin color, religion, origin, state or national affiliation, it shall be punished by imprisonment from three months to five years.

(3) If the act referred to in paragraph 2 of this article is committed by an official in the performance of his duties, he shall be punished by imprisonment of one to eight years.

The Law on Prohibition of Discrimination regulates the area of protection against discrimination in a systemic manner. In the Law, the protection against discrimination is elaborated and specified, as well as the institutional mechanisms of protection are defined: the **Protector of Human Rights and Freedoms**, to whom citizens can turn with complaints; **courts**, that is, the right to file a lawsuit in court; **authorities** for misdemeanors; as well as **inspections** in terms of supervision in the areas of: provision of services, construction, health, education and sports, work and employment, safety at work, traffic, tourism and other areas. The amendments to this Law from 2014 introduced the **promotion of equality aimed at preventing discrimination**. The Law recognizes "disability" as a basis for discrimination (Article 2), and defines discrimination against persons with disabilities as the unavailability of access to facilities and areas in public use for persons with reduced mobility and persons with disabilities, i.e. preventing, limiting or hindering the use of said facilities, in a way that is not a disproportionate burden for the legal or natural person who is obliged to make it possible. Discrimination of persons with disabilities also exists in cases where no special measures have been taken to eliminate the limitations, that is, the unequal position in which these persons find themselves. Data show that nearly 60% of persons with disabilities live close or below the poverty line.

The Law on Prohibition of Discrimination against Persons with Disabilities is the most important legal act, which guarantees the prohibition of discrimination against members of the mentioned population, respecting the principles of equality, tolerance and equality. **The new Law on Prohibition of Discrimination against Persons with Disabilities** is fully compliant with the UN Convention on the Rights of Persons with Disabilities. This law, in a high-quality and comprehensive manner, recognizes and regulates the prohibition of discrimination against persons with disabilities and introduces penal provisions that threaten very high penalties for committed discrimination against members of this population.

The Ministry of Human and Minority Rights has been empowered with the introduction of set of measures to their jurisdiction, one of which is the obligation of developing strategic documents to address the laws in fields of discrimination and creation of conditions for achieving equality of persons with disabilities. **The Strategy for the protection of persons with disabilities from discrimination and the promotion of equality for the period 2017-2021 year**, with the strategic goal in the field of upbringing, education and professional training is to enable inclusive education at all levels, for all pupils and students.

The General Law on Education (*Official Gazette of the Republic of Montenegro* no 64/02, 31/05 and 49/07; *Official Gazette of Montenegro* no 4/08 – oth. law 21/09 – oth. law, 45/11, 26/13 – *Decision of the CC11*, 39/13, 44/13 – corr, and 47/17059/21 from 04.06.2021) regulates the organization and conditions for performing educational work in preschool, primary and general secondary education, vocational education, special needs education and education of adults. **The Article 2 of this Law** defines the key education goals which to a broad extent set out to ensure the possibilities for child's comprehensive individual development regardless of the sex, age, social and cultural background, national and religious affiliations and of physical and psychological structure; meeting the needs, interests, wishes and ambitions of individuals for life long learning; ensuring that individuals reach internationally comparable levels of knowledge, skills and competences; develop the awareness, the need and abilities for protecting and improving the human rights, legal state, natural and social environment, multiethnicity and diversity etc. In addition, **the Law in Article 9** prescribes equal rights to education both for Montenegrin and foreign citizens, meaning that foreign citizens with permanent or temporary stay in Montenegro are equal to exercise the right to education as Montenegrin citizens, which is regulated by separate law. This provision is present in other education laws, as well as at other education levels (laws on general secondary education and vocational education).

The General Law on Education (Article 9) incorporates in its text the provision on the prohibition of any type of discrimination – physical, psychological, social violence and child neglecting; physical punishment of students and employees and other forms of discrimination. In the conflict resolution procedures between children, parents, fosterparents, caretakers and employees in the institutions, as conflict solution measure is prescribed the engagement of mediators, in line with the law (Article 9b).

The most recent Changes and Amendments to the General Law on Education (adopted in October 2024) introduce new provisions to further regulate safe teaching and learning environment for students. The changes and amendments to the Law, for example, introduce a provision regarding the rights and obligations of parents and their obligations related to learning of their children, and further parental responsibilities in relation to school duties and schedule. The amendments also introduce more explicit prohibition of any form of school violence by instituting the obligation of initiating a misdemeanor, i.e. criminal proceedings against the person who commits violence against school children (this provision was not previously part of the general education law).

The Law on Primary Education ("Official Gazette of the Republic of Montenegro", num. 64/2002, 49/2007 and "The Official Gazette of Montenegro", num. 45/2010, 40/2011, 39/2013 and 47/2017) in its amendments from 2017 has included the accessibility to education: "Primary education shall be accessible to all persons and may not be constrained, directly or indirectly, on any grounds: sex, race, colour, language, religion, marital status, political or other beliefs, national, ethnic or other background, financial standing, disability or any other similar ground, position or circumstance." (Article 2a), now part of the current law. **This provision is also part of the Law on Preschool Education, the Law on Gymnasium and the Law on Vocational Education.**

The Law on Minority Rights and Freedoms ("Official Gazette of Montenegro", no. 031/06 from 12.05.2006, 051/06 from 04.08.2006, 038/07 from 06/22/2007, Official Gazette of Montenegro", no. 002/11 of 01/12/2011, 008/11 of 02/04/2011, 031/17 of 12.05.2017) in several articles describes the wide-ranging rights of minority peoples and other national minority communities: the right to schooling in their own mother language, the right to adequate representation of their mother language in general and vocational education, the right to teaching in the mother language and right in relation to the content in education programmes respecting the history, art, culture and tradition of minority peoples and communities, founding of the education institutions etc.:

Article 13

Minority peoples and other minority national communities and their members have the right to education on their own language and appropriate representation of their language in general and vocational education, depending on the number of students i financial possibilities of Montenegro.

The rights from paragraph 1 of this article are exercised at all levels of upbringing and education. The rights from paragraph 1 of this article are exercised through special schools or special classes in regular schools. Teaching is conducted entirely in the language of minority peoples and other minority national communities. When classes are conducted in the language of minority peoples and other minority national communities, it must be taught official language and script. Pupils and students who do not belong to minority peoples and other minority national communities can learn the language of minority peoples and other minority national communities with whom they live together.

Article 14

A department with classes in the language and script of minority peoples and other minority national communities can establish for a smaller number of students than the number determined for the work of that institution, which cannot be less than 50% of the number of students provided by law.

Article 15

The subject programs for the purposes of education from Article 13 paragraph 1 of this law contain topics from the field of history, arts, literature, traditions and culture of minority peoples and other minority national communities. Before the adoption of subject programmes that express the uniqueness of minority peoples and other minorities of national communities, the Council of Minority Peoples and other minority national communities gives an opinion to the competent authority authority for the adoption of the programs in question.

The educational programme in institutions and schools with teaching in the official language contains topics from the mother tongue and literature, history, art and culture of minority peoples and other minority national communities and other contents that promote mutual tolerance and coexistence. In territories where the language of minority peoples and other minority national communities is also in official use, the educational program in institutions in the official language may also include the possibility of learning the language of minority peoples and other minority national communities.

Article 16

For the needs of education in the language of the relevant minority peoples and other minority national communities, in the sense of Article 13 paragraph 1 of this law, within the framework of higher education, departments, faculties or institutes can be provided for the education of educators, teachers and teachers in the language of those minority peoples and other minority national communities. For the sake of the effective participation of minority peoples and other minority national communities, Montenegro can promote international educational, scientific and technical cooperation, with the aim of enabling members of minority peoples and other minority national communities to study abroad in their native language and for the diplomas thus obtained to be recognized, in accordance with the law.

Article 17

Minority nations and other minority national communities and their members have the right to establish educational institutions. Financing of institutions from paragraph 1 of this article is the responsibility of the founder.

Article 18

Educational work in a school institution or a special department of a regular school with language teaching of minority peoples and other minority national communities are performed by teachers from among those minority peoples and of other minority national communities who have active knowledge of the languages of minority peoples and other minorities national communities, i.e. teachers who are not from the respective minority peoples and other minorities national communities, and they have an active knowledge of the language and script of those minority peoples and other national minorities community.

Director of a school institution founded by Montenegro or a municipality with teaching in the language and script of minority peoples and of other minority national communities who meet the conditions from paragraph 1 of this article are elected in accordance with the law. The competent body of the state administration is obliged to obtain the opinion of the Council before selecting the person referred to in paragraph 2 of this article minority peoples and other minority national communities.

In addition, **Article 19 of the Law**, for the purpose of the full enjoyment of minority rights, the University of Montenegro, following the proposal of the Minority Council, may admit, each academic year, a certain number of students from the ranks of minorities, in accordance with the University Charter. When submitting the set of documents for admission, prospective students are required to submit the application in which they state their affiliation with a certain minority group.

Article 6 of the Law on Higher Education ("Official Gazette of Montenegro", no. 44/2014, 52/2014 – corr., 47/2015, 40/2016, 42/2017, 71/2017, 55/2018, 3/2019, 17/2019 - law, 47/2019, 72/2019 and 74/2020) defines that higher education is available to all and may not be directly or indirectly restricted on the grounds of: gender, race, marital status, skin colour, language, religion, political or other affiliation, national, ethnic or other origin, financial status, disability or other similar grounds, position or circumstances, in line with the specific law. **The University Charter** regulates the rules of admission and studying to more detail.

In the Adult Education Law, Article 4a on Equality defines that “adults cannot be directly or indirectly limited in acquiring education on the basis of: gender, race, marital status, skin color, language, religion, political or other conviction, national, ethnic or other origin, belonging to the national community, property status, incapacitation (disability) and on other similar grounds, position or circumstances.”

With regard to inclusive education for meeting the needs of vulnerable i.e. marginalised groups, in cooperation with **the Ministry of Labour and Social and Welfare and Ministry of Human and Minority Rights, Ministry of Education, Science and Innovation** is part of the process of meeting the expectations and recommendations related to the Convention on the Rights of Child and other international documents. These mechanisms are integral parts **of the Strategy for the Inclusive Education 2019-2025 and Strategy for Early and Preschool Education 2021-2025**. The theoretical framework on which the Strategy for Inclusive Education is based shapes the aspects of an inclusive education system as set out by the General Comment No. 4 (2016) of UNCRPD Article 24 on the Right to Inclusive Education.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

Gender, race, marital status, skin colour, language, religion, political or other affiliation, national, ethnic or other origin, financial status, disability or other similar grounds, position or circumstances

☒ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

- ☒ In pre-primary education (including early learning and care)
- ☒ In primary education
- ☒ In secondary education
- ☒ In technical and vocational education and training
- ☒ In higher education
- ☒ In adult education and alternative learning

- Please provide details:

From the Constitution of Montenegro through other legal legislation, citizens are guaranteed equal human rights, and the promotion of national, ethnic and other equality, including the rights of children and young people in the field of education.

The **UNICEF's Education Sector Analysis 2015–2020**, developed in cooperation with the partners in 2020 and aimed at providing comprehensive analysis of the quality of education, so far progress and challenges, affirms that “Montenegro has been progressively strengthening its legal and political systems and programmes in accordance with the international standards during the last decade”. Indeed, more advanced efforts on the improvement of the legislative and regulatory processes took place after Montenegro was awarded the status the EU candidate country in December 2010 and after the accession negotiations towards the EU membership began in June 2012. The set of laws and strategies adopted in 2017 in the field of education reflect the state commitment to aligning the national legislation to meet the international human rights standards and norms¹⁹.

The development directions of Montenegro in the past ten years show clear commitment to improving the strategic framework in order to improve the quality of services for all citizens, with special focus on the measures designed for improving access and availability of education, achieving equity and gender parity, improve the environment for social inclusion of SEN persons and students, national minorities and all vulnerable groups. The basis for such planning is the **Decree on the methodology and the procedure for drafting, aligning and monitoring of the implementation of strategy documents** adopted by the Government of Montenegro in July 2018 and followed with the development of guidelines for their preparation and methodology documents²⁰.

The main strategic documents and state programmes which guide this process:

The Montenegro Development Directions (MDD) (2018-2021) and the MDD for 2022 – 2025, the Economic Reform Programme (2021-2023), the Economic Reform Programme (2024-2026). The Accession Programme of Montenegro (2021-2023) and the **Accession Programme 2024-2027** (adopted in April 2024) are aimed to continue with the aligning of the legislation with the EU standards and developing of administrative capacities in order for Montenegro to gain capacity for assuming the required obligations of the EU membership. **The Mid-term Work Programme of the Government of Montenegro 2024 - 2027** puts in the first place the prosperity of society and economic reforms, and was developed following the election of the forty-fourth Government of Montenegro, which mandate began on October 30, 2023. The proposed Work Programme envisages “improving the quality and increasing the availability of preschool institutions, in the domain of infrastructure as well as in the domain of educational staff, in order to provide children with adequate care and upbringing. Based on a thorough analysis of the state of the education system in Montenegro, the aim is to create adequate strategic and legislative framework in this area and implement the reform of the primary education system and secondary education.”

Especially important new document is the **Reform Agenda of Montenegro 2024-2027**, adopted by the Government on 26 September 2024 after some months of multisectoral working groups work and national consultations, which proposes the key reform measures in areas of strategic importance needed for the successful economic growth and convergence with the countries of the European Union. The measures set in the Reform Agenda of Montenegro are to be funded through the Instrument for Reform and Growth for the Western Balkans, after the adoption of the EU's Growth Plan for the Western Balkans on 8 November 2023 by the European Commission, in order to boost the country's economic development and accelerate the key reforms in the process of accession to the European Union. The funds that will be available to Montenegro are conditional to the successful implementation of the reform measures defined in the Reform Agenda, economic and political development of Montenegro, as

¹⁹ The UNHR Mandate of the Special Rapporteur on the right to education, Montenegro report 2023

²⁰ The Methodology of development of policies, development and monitoring of the implementation of strategic documents: <https://javnepolitike.me/wp-content/uploads/2020/11/Metodologija-razvijanja-politika-draft3-preview-22SEP20.pdf>

well as for the acceleration of European integrations²¹. Taken into consideration the advanced technological development and rapid changes at the labour market in the global and domestic economy, as well as overall developments at global level and the today's more complex effects of the globalization processes, and the need for flexible and new qualifications and skills in order to achieve the quality of work, productivity and employability, the Reform Agenda puts forward "key reform measures as an incentive for the development of human capital, mainly through the improvement of employment opportunities, support for activation, reform of social services together with education and skills development and promotion innovation environment". The Agenda puts focus on the challenges: "One of the biggest challenges of the labour market is the insufficient inclusion of vulnerable groups, especially women, young people, beneficiaries of the rights to material benefits from the field of social and child protection, persons with disabilities and other vulnerable categories. In addition, the level of development of the system of support services for life in the community is still not at a high level to enable independent and productive life of the mentioned groups. Insufficient activation of material security beneficiaries to leave the social benefits system is also one of the challenges. Increasing the participation of women in the workforce is a challenge in itself. The main obstacle in the development of measures and programs aimed at women is the identification of socioeconomic obstacles through the analysis of the structural characteristics of unemployed women".

Montenegro has been one of the first countries to fully embrace and integrate into its system the UN requirements set out in the 2030 Agenda for Sustainable Development of the United Nations". Special focus of our interest is the Sustainable Development Goal 4 on Quality Education – *Ensure inclusive and equitable quality education and promote lifelong learning opportunities for all*, is broadly present and addressed in all up-to-date national strategic documents covering the fields of education, sustainable development, human rights and social policies and mentioned in associated strategies. **The National Strategy of Sustainable Development by 2030** was adopted on 7 July 2016 at the 164th government session, as well as its Action Plan for Implementation, in line with the UN Agenda on SDG goals by 2030 and global and international agendas.

An important part of the quality of early preschool education and care relates to ensuring equal availability of quality ECCE programmes, as set in **The Early Preschool Education and Care Strategy for the period 2021 – 2025**. In the previous period, various activities were implemented to support staff and children from marginalized groups, such as measures that contributed to greater availability of ECEC for children from vulnerable groups. These measures are covering the total costs for the stay and nutrition of children with a guidance decision, children from Roma and Egyptian communities, children from poor families that are beneficiaries of the material support and without parental care by Ministry of Labour and Social Welfare (i.e., present Ministry of Labour, Employment and Social Welfare) and covering 50% of the price for children of single parents by the Ministry of Education (present Ministry of Education, Science and Innovation). With the amendments to the laws in the field of education in 2017, it is precisely established the principle of non-discrimination in accordance with a special regulation that will reach overall inclusiveness. In addition, the introduction of a three-hour programmes and interactive services with libraries of toys and books has significantly increased the availability of ECCE to children living in remote and difficult-to-reach areas that have traditionally been very little involved in the ECCE programmes²².

The Strategy of Inclusive Education (2019-2025) aims to provide children with special educational needs with accessible and quality inclusive education at all levels and to achieve accessibility, equality, fairness, continuity and quality. The strategy sets as its strategic objective - quality and inclusive system of vocational education which is the basis for lifelong learning, economic and social integration, personal

²¹ Information on the process of preparing the Reform Agenda of Montenegro 2024-2027 for the EU Instrument for Reforms and Growth with the Proposal for the Reform Agenda of Montenegro 2024-2027 for the EU Instrument for Reforms and Growth: <https://www.gov.me/dokumenta/2cc3baa0-65d6-4d97-a25c-fa171aa559b3>

²² The Strategy of the Early and Preschool Education and Care, link to Ministry's website: <https://www.gov.me/clanak/strategija-ranog-i-predskolskog-vaspitanja-i-obrazovanja-2021-2025-sa-akcionim-planom>

and professional development of the individual, with an effective system of management and financing. Strategic objectives are to create vocational education that is relevant to the individuals, the labour market and society, accessible and innovative.

The operational objective 4.1. of the **Vocational Education Development Strategy in Montenegro (2020-2024) with the Action Plan for 2020 - 2021**: „Vocational education that enables skills, competences and qualifications for employability, lifelong learning, inclusiveness, personal development and active citizenship of individuals“ is defined by a series of measures and activities that prevent discrimination, i.e. enables a flexible system of vocational education in accordance with individual capabilities.

In the **Strategy for Adult Education of Montenegro (2015-2025) with the Plan for Adult Education 2019**, the priority goals are defined as „Increasing the social inclusion of adult citizens through lifelong learning and education activities“.

In April 2024, the new **Council for Higher Education** was formed and its members elected following new government formation and education ministry set up. At the government session held on July 26, 2024, the new **Strategy for the Development of Higher Education in Montenegro 2024 – 2027 was adopted as well as the two-year Action Plan for the Period 2024/2025**. The Strategy was finally adopted after the former Strategy of Development of Higher Education 2016 – 2020 ceased to be valid and several drafts which did not pass the national or European Commission's scrutiny. Following the most recent 2024 legislative reforms in the education laws aimed at expanding access and rights of pupils and students, in accordance with the Work Programme of the Government of Montenegro as well as the Work Programme of the Ministry of Education, Science and Innovation for the year 2024, it is planned that the new law on the amendments and changes to the law on higher education is to be prepared by the end of 2024.

The Council for the Rights of the Child was formed in 2021 as the highest multi-sector coordinating body for the rights of the child in the country, at the level of the Cabinet of the Prime Minister, in order to intensifying reforms in the field of children's rights in all sectors. The reforms are aimed at reducing poverty, a systemic response in the prevention of violence and exploitation, reducing the number of children in institutions, increasing the number of children from the Roma and Egyptian communities and children with developmental disabilities in education, achieving an adequate quality of education, among other things through the digitization of education, increasing number of children in preschool education, equal and timely support for children's early development²³.

The Strategy for Teacher Education in Montenegro (2017-2024) with the Action Plan for 2017 and 2018. The strategy aims to create policies and practices of initial and continuing teacher education, which will provide support to teachers in achieving complex role and prepare them for educational work as basis for the quality, permanence and applicability of knowledge that students acquire at all levels of education, their personal and professional development, social inclusion and readiness for active citizenship.

The Strategy for Digitalization of the Education System of Montenegro (2022 - 2027) with an Action plan for 2022 and 2023;

The Youth Strategy 2017-2021 and the Youth Strategy 2023-2027 are aimed to improve and facilitate the youth transition from education to labour market. Concerning the challenges addressing youth, the analyses show somewhat pessimistic trends on the position of youth in the society when it comes to their competences development, opportunities for employment and participation in the society. There is still a high mismatch of knowledge and skills with the needs of the labour market. The rate of young people who are not employed and not in education or training (NEET) is still at prominent level of 23.2%.

²³ The Country's Commitment Statement on Achieving the SDG goals by 2030:
<https://www.gov.me/dokumenta/de9a6f44-a58a-41ca-b0af-b271780dcb15>

The limited level of professional skills of the students after completing vocational education is high. As one of the latest measures introduced in order to address this issue is the introduction of **The Child and Youth Guarantee Programme in Montenegro (2023-2026)**, as one of the reform measures, which aims to improve the position of young people for easier inclusion in the labour market and higher employability.

The National Strategy for Gender Equality 2021–2025 with the Action Plan for 2021–2022 year was prepared by the Ministry of Justice, Human and Minority Rights in cooperation with the OSCE Mission to Montenegro.

Strategy for the integration of persons with disabilities in Montenegro 2008 – 2016;

Strategy for integration of persons with disabilities in Montenegro 2016 -2020 (Ministry of Labour and Social Welfare);

Strategy for the protection of persons with disabilities from discrimination and the promotion of equality for the period 2017-2021 year;

Strategy for the protection of persons with disabilities and promotion of equality 2022 -2023:

“According to the UN Convention on the Rights of Persons with Disabilities, inclusive education is essential for realizing the right to education for all members of society without discrimination and on an equal basis opportunities, including persons with disabilities. Based on Article 24 of the Convention, the signatory states must ensure the realization of the right of persons with disabilities to education through an inclusive education system at all levels levels, including preschool, primary, secondary and higher education, professional training and lifelong learning, extracurricular and social activities, for all students, including persons with disabilities, without discrimination and on an equal footing with others. Inclusive education provides a platform for fight against stigmatization and discrimination”.

The Strategy for the Social Inclusion of Roma and Egyptians in Montenegro 2021-2025 (the Ministry of Human and Minority Rights) with the Action Plan for 2021.

The Entrepreneurship Lifelong Learning Strategy 2020-2024 sets out to ensure the improvement of the development of entrepreneurial competence at all levels of formal education, realization of entrepreneurial learning within non-formal education and increasing the efficiency of the functioning of the entrepreneurial learning system.

Other programmes: **The Programme for Preschool Education for 2022 and the Programme of the Development of General Secondary Education in Montenegro 2024 -2026.**

A general remark, based on the insight into the above strategies, plans of action and programmes, is that all these documents strive to incorporate the principles of inclusiveness, fairness, affirmative action, equal opportunities to a highest possible extent, which are to be achieved through the concrete activities and measures put down in the plans with pinpointed timeframes which are to be subject of the governmental investments, as well as the EU's funding and international support on the conditionality basis. In the strategic documents, i.e. their action plans, are listed the key initiatives, measures and activities for quality education and the advancement of the development of the education system.

☒ Combatting discrimination in terms of curriculum:

☒ In pre-primary education (including early learning and care)

☒ In primary education

☒ In secondary education

☒ In technical and vocational education and training

- ☒ In higher education
- ☒ In adult education and alternative learning
- Please provide details:

Present preschool education programme has integrated several measures to improve the quality of the programme delivery. These measures include: the introduction of a new three-hour programme, the organization of free interactive services in 16 municipalities (out of 24 in Montenegro) and toy libraries, delivery of programmes of the English language for children aged three to six years, and by introducing a transition kindergarten-to-primary school programme that is continuous, cooperative and participatory, and actions to improve the quality of cooperation with the parents. Also, **the changes to the education law from 2017** define that the duration of the individual programmes is to last in accordance with the parents' needs and the interests of children, also is defined the possibility of organizing extended stay and other programmes, who would be financed by parents, for stimulating and entertaining children and providing support to parents (in accordance with the spatial capacities and personnel of preschool institution), which created opportunities for the expansion of diversified programmes.²⁴ This programme is additionally supported by the development of the publication "Development-education instructions and informative material", the purpose of which is to encourage and evaluate particular areas of child's development and is intended for educators and parents.

A good initiative is the internationally recognized **parenting programme "Parenting for lifelong health for young children"** in preschools in Podgorica, Cetinje, Nikšić and Bijelo Polje, in cooperation with UNICEF, aimed at working on the establishment of positive relations between parents and children. The goal is on building the sense of competence with parents, also on the prevention of violence against children and prevention of behavioral problems in children. In addition, the training programme for the implementation of this programme is part of the teacher professional development programmes.

In the primary and secondary subject programmes that are under the jurisdiction of the Bureau for Education Services (preschool, primary and secondary general education) in the methodological framework intended for the development and improvement of subject programmes, the key elements are **the objectives of the subject programmes**. In addition to these educational goals, framework includes also the **process goals**, which define that students must respect differences, be interactive and participate in teamwork. This is a good platform to further work out in the subject programme and implement it in the teaching process.

Inclusive measures in the vocational education system envisage an individualized approach, which begins with the enrolment in the education (in this phase the Individual transition plan 1 is developed - which is implemented by the primary school in cooperation with the student, parents and secondary school). Then, during the attendance of the educational programme, it is envisaged to create **an individualized developmental and educational programme** for each student enrolled in the educational programme by the decision of the guidance committee, and for all other students where the teachers deem it necessary. Individualized support is provided also when exiting the vocational education system and moving to a higher level of education, i.e. to the labour market, through the Individual Transition Plan 3 process, i.e. 2.

The Catalogue of Professional Training Programmes for Teachers 2023-2025 in special areas foresees a total of 10 different professional training programmes for teachers to work with students with special educational needs and vulnerable groups, as well as with gifted students. In the same Catalogue, there are 4 professional training programmes for teachers in the field of gender equality and the fight against violence.

²⁴ The Strategy of Early Preschool Education and Care for Montenegro (2021-2025)

In the **Entry Requirements for the adult education programme**, only the required level of education necessary to achieve the learning outcomes and competencies of the programme is defined. The methodology for the programme development envisages adaptation of the programme to vulnerable groups and individualized approach in the implementation of the programme.

- ☒ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

The measures are also regulated as items in the statutes of educational institutions as well as in the Law on General Education, in the segment that students' specificity and individuality are respected and that any violence on any grounds is prohibited.

In addition, the measures are employed through cooperation with the non-governmental organizations, such as implementing education and training activities, attending school classes, also via project activities aimed at discussions about discrimination and measures to eliminate it.

1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

General measures:

- | | |
|--|--|
| ☒ Legislation provides for inclusive education for all | ☒ Multiple and flexible learning pathways ²⁶ are provided for |
| ☒ Policy measures aim to enhance inclusion in education for all | ☒ Curricula and teaching methods are inclusive in design ²⁷ |
| ☒ Teachers are trained on inclusive education ²⁵ and to value diversity | ☒ Multilingual and intercultural education is supported |
| ☒ Initiatives to address discrimination and promote cultural diversity and mutual acceptance | |
| ☐ Other: | |

²⁵ Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

²⁶ Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

²⁷ In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

The state education authority prescribes 80-85% of the content in subject programmes within their methodological framework, and the rest of 15-20% content is the autonomy of schools, teacher professional groups and teachers to plan and implement the content in the part of 'open' curriculum. In that part, students can learn by implementing the content of local importance in the areas of culture, art, language, customs, history. In this way, they elaborate on the content of local importance which can serve in anti-discrimination activities and free development of students of all nationalities, races and religions.

All educational programmes are conceptualized in such a way as to contain recommendations on adapting the programmes to meet the needs of students with special educational needs, also attendees of adult education and gifted students.

The vocational education and training programme concept is flexible and sensitive for students/participants with different abilities. The achievement standards are the same for all students/attendees, but the system is designed so that students/participants with different abilities can make achievements according to their abilities, and be assessed according to their achievement. Educational programmes are designed as programmes of broad profiles, based on related professional qualifications, which, wherever possible, are of logically different levels, and this enables children to be together in the classes of their peers, and to achieve professional and educational level qualifications in accordance to their capabilities and pace. Students/attendees who join educational programmes for the acquisition of a professional qualification, in accordance with their capabilities, can acquire the entire professional qualification or part of it.

Professional teacher training programmes are implemented at the request of schools and at the initiative of the Center for Vocational Education. Trainings for individualized planning and delivery of teaching are among the most requested trainings by teachers.

The Law on Adult Education enables direct verification of knowledge and skills, regardless of the method of their acquisition.

In order to identify the children who are not in education system, the Ministry of Internal Affairs in cooperation with the UNICEF office in Montenegro have established an exchange of data, and developed a model which is based on interoperability, to be used by the Montenegrin Education Information System (MEIS) and the Central Population Register. This model is currently in the pilot phase.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Inclusive Education Strategy (2019-2025) includes in the heading of the "Foreword" chapter the quotation by UNESCO: "Inclusive education implies the participation and teaching of ALL children in formal and informal learning environments, regardless of gender, physical, intellectual, social, emotional, cultural or other characteristics" - UNESCO, 2015.

"...When creating an inclusive educational policy, the starting point is the belief that personality is a property of a person from which dignity, equal and inalienable rights in the community arise. By fulfilling the principle of equal opportunities through inclusive education, a choice is provided in accordance with the individual capabilities of a child with special educational needs, and education is carried out without discrimination."-the excerpt from the Inclusive Education Strategy (2019 -2025).

The law provisions and strategies dealing with this item are mentioned/listed in the previous sections. The General Law on Education, The Law on Primary Education, The Law on Vocational Education etc.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

Inclusive education is provided by law and accepted in practice. In practice, the impression is that it is feasible in terms of the number of children included, but the quality of inclusive education is questionable. Educational institutions in Montenegro are in a certain percentage not adapted to children with special educational needs²⁸, teachers are not educated to work with different needs of children, teaching assistants as technical support are generally provided, but often the educational institution is not able to provide this type of support²⁹ in the required capacity for children, committees for the guidance of children with special educational needs act by the procedures for assessing and determining the IDEP (individual development - education plans), but they often do not do it promptly and it is questionable how the monitoring of an already determined programme is carried out, etc. (Please note that all the comments of the Protector for the Human Rights and Freedom in the questionnaire are drawn based on the particular cases the subject of the examination procedures either initiated by the Protector or the cases of the complaints by third parties, in the period 2019 to 2024. For this specific question 1.2, the Ombudsman provided commentary in relation to the six individual cases in the below links, which were subject of the examination procedure and recommendations with respect to equal opportunities and equal access to education (i.e. the lack of teaching assistants in two primary schools and one faculty of law, the lack of adequate measures needed for SEN child in one preschool institution, the lack of school elevator for a student in wheelchairs with special educational needs in a vocational school).

Schools need additional continuous support in order to solve concrete situations with an integrated teams' approach and to design different individual paths for students who need it. Large schools, which work in several daily shifts, which implement educational programmes from several and large number of sectors, can hardly respond to the request to significantly deviate from the regular schedule for children who need it. Classes of 28 students are large, and it is a big challenge for teachers to work with such a large group and conduct individualized teaching, or organize practical teaching, etc³⁰.

The challenges are in insufficiently profiled teaching staff who do not sufficiently understand the concept of discrimination. Certain teachers practice different types of discrimination hidden from the eyes of the public, especially when it comes to grading children of the RE population, where negative grades (units) are given and the children are not given neither regular nor remedial classes. This is one of the problems of discrimination against children of the RE population in the state³¹.

The causes which have long-term effects are to be found in the economic and social conditions affecting the RE population; family conditions and parents' lack of information about the importance of enrolling children in education which often leads to drop-outs; existence of language barriers; insufficient number of mediators and professional associates who would direct RE children during their education; the need for training the preschool teachers to work with RE children (from the Strategy of social inclusion of Roma and Egyptians 2021-2025, with the Action plan for the period 2024 and 2025).

²⁸ https://www.ombudsman.co.me/docs/1722496393_230524_preporuka_tv.pdf , (23/5/2023)

²⁹ https://www.ombudsman.co.me/docs/1547129432_25122018-preporuka-nk.pdf
https://www.ombudsman.co.me/docs/1511962974_11062017-preporuka-os.pdf
https://www.ombudsman.co.me/docs/1552553162_31122018-preporuka-mis.pdf
<https://www.pobjeda.me/clanak/student-napustio-fakultet-jer-nema-asistenata-u-nastavi>
https://www.ombudsman.co.me/docs/1673943585_30120222_preporuka_ba.pdf

³⁰ The Bureau for Education Services of Montenegro

³¹ Montenegrin Association for the Support for Roma and Egyptian Population (nongovernmental sector)

An evident lack of teaching and non-teaching staff, which makes it difficult to work in institutions that normally have too many groups.

A large number of children with guidance decisions and an insufficient number of assistants, overbooking of the spatial capacities of preschool institutions.

The overbooking of kindergartens and the lack of educational staff are challenges in the work of preschool institutions. The construction of new kindergartens is also planned but rigid tender procedures make it much more difficult to start the works. Lack of free space in municipalities for assignment and adaptation³².

The problems analysis tree³³ in the Preschool Education Strategy highlights the inadequate coverage of preschool education and upbringing as one of the challenges, due to inflexible regulations and insufficient spatial capacities, which result in inadequate working conditions, too many children in the group, insufficient number of educators and professional associates, inadequate quality of services. Insufficient number of jobs for educational staff, inadequate spatial capacities in preschool institutions, the need to reduce the number of children in educational groups and increase the number of educational units; insufficiently trained personnel; rural areas in particular face additional challenges, such as a lack of qualified staff and a lack of resources.

Other relevant general measures, including gender equality

- | | |
|--|---|
| ☒ Legislation provides for gender equality in education | ☒ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education |
| ☒ Policy measures aim to enhance gender equality | ☒ Re-entry programmes for young mothers are provided for |
| ☐ Gender-responsive education sector planning is undertaken | ☒ Ensuring safe and adequate gender-sensitive sanitation facilities ³⁵ |
| ☒ Providing positive or affirmative action measures | ☐ Curricula are rid of all stereotypes ³⁶ and bias |
| ☒ Providing financial incentives and fellowships | ☒ Ensuring gender parity in science, technology, engineering and mathematics (STEM) |
| ☒ Teachers are trained (initial and in-service) on gender equality | ☒ Ensuring gender parity in technical and vocational training education and training (TVET) |
| ☒ Teachers are trained to combat stigmatisation ³⁴ | |
| ☒ Other: | |

In all laws in the field of education, there is a special article which defines the use of gender-sensitive language.

³² Bureau for Education Services of Montenegro

³³ The Strategy of Preschool Education and Care 2021 – 2025

³⁴ 'Stigmatisation is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

³⁵ 'Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

³⁶ Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

Teachers are provided with several professional development programmes related to gender equality, anti-gypsyism and communication within the Professional Development Catalogue of the Vocation Education Centre.

There is a developed education programme specifically designed for the acquisition of key skills in the field of gender equality, as well as a programme for the acquisition of key skills in the field of anti-gypsyism and other discrimination decisions against Roma and Egyptians.

It is necessary to make efforts to educate the teaching staff in relation to gender equality, non-discrimination, affirmative action, so that the curriculum is also free of stereotypes and prejudices. The control and supervision by the Bureau from Education should be further strengthened.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

As a horizontal principle, gender equality is one of the aims of the new Reform Agenda for Montenegro which states that “given that the Gender Equality Index for Montenegro in 2023 is 9.3 points lower than the EU-27 average (68.6 in 2022), the focus will be on solving persistent gender inequalities. In this sense, gender equality will be included in the implementation of the Reform Agenda”.

The implementation of reforms in this area is supported by numerous legal acts that cover the most important segments of this current topic. When it comes to Montenegrin legislation, **the Constitution of Montenegro**, adopted in 2007, includes issues of gender equality through two articles. **Article 8** forbids direct or indirect discrimination on any basis and defines that special measures to create conditions for achieving national, gender and overall equality, as well as the protection of persons in an unequal position, will not be considered discrimination. While **Article 18** guarantees the equality of women and men and develops a policy of equal opportunities. **Also, the Law on Prohibition of Discrimination**, adopted in 2010 and last amended in 2017, more precisely defines direct and indirect discrimination. Discrimination on the basis of gender identity and sexual orientation is explicitly defined in **Article 19**. In this way, the implementation of the subject reforms can have a strong legal basis. In order to concretize the activities of the Government work program for 2024, it is planned to adopt the draft Law on Equality and Prohibition of Discrimination with the aim of achieving full compliance with EU standards. The aforementioned programme also includes a report on the implementation of the National Strategy for Gender Equality (2021-2025) for the year 2023, with the aim of improving the application of the normative framework, improving education and the media to reduce stereotypes and increase the participation of women and persons of different gender identities. Within the framework of **the National Sustainable Development Strategy of Montenegro** until 2030, which was adopted in 2016, the goals of sustainable development of the UN are integrated. The results expected by this strategic document by 2030 include among other important goals, the elimination of all forms of violence against women and girls.

The National Strategy for Gender Equality 2021-2025 with the Action Plan 2023-2025 is the fourth national strategic document for gender equality in Montenegro, which aims to further raise the level of gender equality. The strategy was developed by the Ministry of Human and Minority Rights in cooperation with other sectors and institutions of the system. Montenegro shows its determination to implement the conventions of the UN, the Council of Europe, the European Union Strategy for Gender Equality 2020-2025, and other international binding acts. **Operational objective 1** - Improve the application of the existing normative framework for the implementation of gender equality policy and protection against discrimination based on sex and gender; **Operational objective 2** - Improve public policies and public education in order to reduce the level of stereotypes and prejudices against women and persons of different sexual and gender identities and **Operational objective 3** - Increase

the level of participation of women and persons of different sexual and gender identities in areas that provide access to resources and benefits from the use of resources.

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

When implementing planned trainings on gender equality and gender discrimination for teachers and the highest management staff in institutions, the main challenge is deep discrimination on the basis of motherhood, entrenched patriarchy, stereotypes and prejudices related to the social division of roles between men and women. The historical, religious and cultural context, the fear of feminism has a great influence on the awareness of the right to equal rights of every man and woman, LGBT persons... The response of teachers and educators is insufficient, so sensitization on the issue of gender equality is quite slow.

The involvement of women in the labour market is still lower than the involvement of men, so the activity rate of women aged 15+ in the 3rd quarter of 2023 at the level of 61.2%, while the activity rate of men is at the level of 72.1%.

In the previous period, there was a phenomenon that mostly people of one gender were included in certain professions, but this situation is slowly changing and certain measures are being taken through teacher training and promotional activities for the registration of professions.

- Does the legal minimum age for marriage conform to international standards (18 years) ³⁷:

Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.

☐ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

FAMILY LAW ("Official Gazette of Montenegro", No. 1/2007 and "Official Gazette of Montenegro", No. 53/2016 and 76/2020)³⁸, in its articles regulates the legal age of marriage as well as the absolute minimum age:

Article 13

Adulthood is attained at the age of 18.

Full legal work capacity is acquired upon reaching the age of majority or by marrying before reaching the age of majority with the permission of the court.

Article 24

A person who has not reached the age of 18 cannot enter into marriage.

As an exception to paragraph 1 of this article, the court may allow the marriage of a child older than 16 years, in accordance with a special law.

³⁷ Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition." The text of the Country's Commitment on the link: <https://wapi.gov.me/download-preview/de9a6f44-a58a-41ca-b0af-b271780dc15?version=1.0>

³⁸ The text of Montenegro Family Law: https://www.ombudsman.co.me/docs/1611914508_porodicni-zakon.pdf

National minorities:

For reference: Article/Paragraph 5(1)© of the Convention/Recommendation provides for the rights of national minorities.

- | | |
|---|---|
| ☒ Legislation provides for the right to education of national minorities | ☒ Teachers are trained on intercultural education |
| ☒ Policy measures aim to enhance the right to education of national minorities | ☒ Teachers are trained to combat stigmatisation ⁴⁰ |
| ☒ Policy elaboration includes consultations with local communities | ☒ Multilingual and intercultural education are supported |
| ☒ The right to carry out their own educational activities is legally guaranteed for national minorities | ☒ Native language instruction is ensured for national minorities |
| ☐ Educational standards are established for educational institutions run by national minorities | ☒ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ☒ Positive or affirmative action measures are provided for national minorities | ☒ Curricula are rid of all stereotypes ⁴¹ and bias |
| ☒ Financial incentives and fellowships are provided for national minorities | |

Other³⁹:

In the subject programmes, within the methodological framework, the state prescribes about 80-85% of the content, and the rest of 15-20% is the autonomy of schools, teacher professional actives and teachers to be able to plan and implement the content in the part of the free curriculum. In that part, students can realize content of local importance in the area of culture, art, language, customs, history, and in this way, content of local importance that can serve in anti-discrimination activities and development of students of all nationalities, races and religious communities.

The Action Plan for the Implementation of the Strategy of Social Inclusion of Roma and Egyptians 2021-2025 for the period of 2024 and 2025, Operational Objective 5: To improve the availability, effectiveness and quality of education for all members of the Roma and Egyptian community, the following activities are foreseen:

- Trainings for educators, mediators and professional associates in kindergartens with the aim of building capacities for providing support to RE children based on their needs, carrying out visits to Roma settlements, increasing the coverage of RE children with preschool education and education, as well as providing support for regular kindergarten attendance;
- Teacher training to support RE children to acquire basic reading and math skills through regular and supplementary/additional classes and prevention of early school leaving;
- Adaptation and training for facilitators for the implementation of the "Caring Families" programme in preschool institutions and primary schools enrolling the largest number of RE children..., etc.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

³⁹ Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

⁴⁰ Supra note 15.

⁴¹ Supra note 16.

- The Law on the Protection of Minority Rights,
- The Constitution of Montenegro,
- The General Law on Education.

The Article 11 of the General Law on Education stipulates that teaching in the institution are conducted in the official Montenegrin language and, respecting the rights of minority peoples, in the Bosnian, Albanian and Croatian languages;

The Constitution of Montenegro - Article 79 stipulates that members of minority nations and other minority national communities are guaranteed, among others, the rights and freedoms that they can use individually and in community with others:

- 1) on the use of their language and script in private, public and official use;
- 2) to be educated in their own language and script in state institutions and that the curriculum includes the history and culture of members of minority nations and other minority national communities;
- 3) to establish educational, cultural and religious associations with the material assistance from the state.

The key measures introduced by the state authorities:

Promotion of enrollment in ECCE and primary and secondary education - Ministry of Education, Science and Innovation in line with *the Strategy for the RE 2021-2025 Inclusion in Education*, in cooperation with the Ministry of Human and Minority Rights, the Bureau for Education and the NGO organisation - Association for the Support of Roma and Egyptians, Berane, which deals with the issues of the members of the Roma and Egyptian community, every year promotes enrollment in preschool, first grade primary and secondary schools in the cities where live the highest number of RE population. Flyers related to the enrollment in Montenegrin, Roma and Albanian languages were distributed⁴².

For reference, please find here statistical data on the number of enrolled RE children in preschool education in the beginning of the school year, according to age categories and gender:

(School year 2021/2022: Number of children according to age groups: (0-3) M 3306, F 2971, total 6277; (3-6) M 8713, F 8014, total 16727. Total 23,004, of which 12,019 boys, 10,985 girls.

School year 2022/2023: Number of children according to age groups: (0-3) M 3633, F 3361, total 6994; (3-6) M 9304, F 8349, total 17653. Total 24 647, of which 12937 boys, 11710 girls.

School year 2023/2024: Number of children according to age groups: (0-3) M 3635, F 3505, total 7140; (3-6) M 9434, F 8485, total 17919. A total of 25,059, of which 13,069 were boys and 12,990 were girls)⁴³.

An example of the successful integration in the education of RE population is reported in Berane in the northern part of Montenegro, where currently there are 60 children from the RE population in the kindergarten, with one RE mediator who works part-time in the kindergarten and part-time in elementary school. Children are educated in the Public Preschool Institution "Radmila Nedic" in Berane together with children from the majority population. In that part, success was achieved in terms of children's regular attendance of the kindergarten with continuation of this practice for three years now, due to free transportation provided both for primary and preschool RE children. The success is visible in terms of better children socialization, better preparation for school and better learning of the language⁴⁴. (observation by the NGO "Association for the support to Roma and Egyptian").

Transportation - In accordance with the RE Inclusion Strategy 2021-2025, every year, free transportation is provided for over 600 primary school students of the RE population in cities where

⁴² The website of the Ministry of Education, Science and Innovation, the Directorate for the Education of the Minority Peoples and Groups

⁴³ The School Statistics: <https://www.skolskastatistika.edu.me/>

⁴⁴ The comment from NGO sector

lives a larger number of the RE population (Podgorica, Berane, Nikšić and Cetinje). The transport of RE children in the municipality of Kotor for RE children who are far from school is expected as well. In 2024/2025, another large bus is provided for the transport of primary school students in Podgorica.

Associates (mediators) - The engagement of associates (mediators) in the social inclusion of RE in education continued as for a number of years. This practice has proven to be extremely useful for the inclusion of RE population children in the education system, as well as for reducing drop-outs. In total, 26 associates (mediators) work in primary schools: in Podgorica, Nikšić, Bar, Berane, Ulcinj, Herceg Novi and Tivat as of this school year. Currently, according to the current rulebook, for the engagement of collaborators in the social inclusion of RE in education, if more than 70 RE population students are being educated, one associate can be approved. An initiative to amend the *Rulebook for collaborators/mediators* was launched, in which it was proposed that there should be 35 children of the RE population per mediator. Amendments to the Rulebook were adopted by the National Council for Education and is at present in the procedure of being considered for legislative opinion by the government secretariat.

Trainings - From 2021 to 2024, the Ministry of Education, Science and Innovation organized several trainings for the associates in social inclusion of RE in education. For example, during August 2024, training was organized for associates/mediators in schools, and the members of the RE population were especially encouraged to apply to the published public call. (Ministry website)

Scholarships - In accordance with measure 5.8 and measure 5.11 of the Action Plan for the Implementation of the Strategy for the Social Inclusion of Roma and Egyptians in Montenegro 2021-2025, the Ministry of Education, Science and Innovation every year announces a competition in order to award scholarships to secondary school and faculty students. (Ministry website, Directorate for Pupil and Student Standards, Directorate for Education of National Minorities). From the academic year 2024/2025, the amount of the stipend for RE students is increased.

Student Dormitories - Within its accommodation capacity, the dormitory designates up to 5% of its capacity for accommodation of students with disabilities, students of the RE population and beneficiaries of material security.

Commemoration of Roma Day - As part of the celebration of April 8, the World Roma Day, workshops on the sensitivity of women and girls to human trafficking are organized every year in primary schools with large number of RE population.

In accordance with **the Strategy for the Fight against Human Trafficking 2019-2024**, and on the occasion of celebrating of the 18th October - the European Day against Human Trafficking, the Ministry of Education, Science and Innovation every year disseminates a circular letter to all primary and secondary schools in Montenegro. According to the feedback received from the schools, during the celebration of this day in October 2023, more than 70 primary and secondary schools celebrate October 18, the European Day against Human Trafficking. On the occasion of this day, over 700 workshops, presentations, lectures on the topic of cyber violence and human trafficking, sexual violence, sexual exploitation, artistic expressions, documentaries, plays, skits, readings, debates, etc. were held. Schools also publish materials related to October 18 - the European Day against Human Trafficking - on their Facebook pages and websites. (social networks of the Ministry, social networks of primary and secondary schools).

Training - In accordance with *the Strategy for the Fight against Human Trafficking 2019-2024*, the Ministry of Education, Science and Innovation, in cooperation with the Bureau for Education and the Department for Combating Trafficking in Human Beings, held two-day training sessions for professional development of teachers every year on the topic: "Educational system in the prevention of child

trafficking, illegal marriages and economic exploitation of children". In the forthcoming period other trainings for teachers related to the prevention of child trafficking are planned.

Modular vocational education curriculum - *The Law on National Vocational Qualifications* determines three types of qualifications: education qualifications, vocational qualifications and 'additional' qualifications. According to the law, students can acquire education level qualifications by completing education programmes of formal education which are confirmed with the diploma. When obtained this diploma, student can enter into the labour market or continue education. By completing such education programmes student can acquire two or more vocational qualifications, depending whether the education programme is based on two or more occupational standards and qualification standards. Providers of such education are formal education institutions, i.e. schools. On the other hand, vocational qualifications are acquired by completion of a module of the educational programme of formal education, completion of short non-formal learning programmes, by direct verification of previously acquired knowledge or by recognition of foreign certificates on the acquired vocational qualification. Vocational qualifications are acquired for the purpose of employment and can be taken into consideration for the completion of the qualifications of the level of education. Acquired vocational qualification is confirmed with the certificate. Providers of such education are schools, providers of adult education, higher and technical institutes, academies etc.

Therefore, vocational education with modularized curricula and individualized approach opens opportunities for vulnerable and marginalized groups (SEN, Roma, etc.) to complete levels of education and obtain qualifications at their own preference and capabilities, offering fair chances for employment and continuation of education.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

According to the *Report on the Implementation of the Strategy for Social Inclusion of RE*, there is still a high degree of discrimination against Roma and Egyptians. In the education of minorities, e.g. the main challenges of Roma and Egyptians are language barriers, poverty, uneducated parents, stereotypes, prejudices, stigmatization, living in suburban and/or informal settlements and the absence of real integration in society.

The rights of minorities, especially Roma and Egyptians, are further eroded depending on their living and social environment, teaching staff, school administrations which sometimes contribute to drop-out by insufficient activities, non-enrollment of all children in educational institutions, etc.

With regards to data collection on the number of children from RE minorities in education, the challenge is that the numbers vary throughout the school year depending on the student drop out, while student drop-out is not regularly monitored/reported by the school administrations.

Indigenous people:

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| ☒ Legislation provides for the right to education of indigenous people | ☐ Financial incentives and fellowships are provided for indigenous people |
| ☒ Policy measures aim to enhance the right to education of indigenous people | ☐ Teachers are trained on intercultural education |
| ☐ Policy elaboration includes consultations with local communities | |

- | | |
|---|--|
| ☒ The right to carry out their own educational activities is legally guaranteed for indigenous people | ☐ Teachers are trained to combat stigmatisation ⁴⁵ |
| ☐ Educational standards are established for educational institutions run by indigenous people | ☐ Multilingual and intercultural education are supported |
| ☐ Positive or affirmative action measures are provided for indigenous people | ☐ Native language instruction is ensured |
| ☐ Other: | ☐ Adapting curricula and teaching and learning methods to their needs for indigenous people |
| | ☐ Curricula are rid of all stereotypes ⁴⁶ and bias |

More actions are needed that would be applicable and implemented in order to support the indigenous population⁴⁷.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Article 11 of the General Law on Education stipulates that teaching in the institution is conducted in the official Montenegrin language.

Through NGO sector, centers for social work, project activities.

- What challenges were encountered in realizing the right to education of indigenous people? If needed, brief quantitative information may be added.

Poverty, a large number of recipients of material support, inadequate regulations on extended children stay which are not respected in some areas.⁴⁸

People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations⁴⁹:

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|---|--|
| ☒ Legislation provides for their right to education | ☐ Financial incentives and fellowships are provided for |
| ☐ Policy measures aim to enhance their right to education | ☒ Auxiliary assistance is provided |
| ☒ Inclusion in mainstream schools is ensured | ☒ Multiple and flexible learning pathways ⁵² are provided |
| ☒ Positive or affirmative action measures are provided for | ☒ Curricula are rid of all stereotypes ⁵³ and bias |
| ☒ All administrative barriers to access education are removed | ☐ Accelerated learning programmes are provided |

⁴⁵ Supra note 15.

⁴⁶ Supra note 16.

⁴⁷ NGO perspective

⁴⁸ NGO perspective

⁴⁹ 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

⁵² Supra note 13

⁵³ Supra note 16.

- ☒ Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers⁵⁰ are provided for
- ☐ Teachers are specifically trained to ensure their inclusion
- ☐ Teachers are trained to combat stigmatisation⁵¹
- ☐ Other:
- ☒ Non-formal and/or alternative education programmes are provided
- ☒ Language classes to newcomers are provided for
- ☐ Multilingualism and intercultural education are encouraged

Non-formal education programmes for learning the Montenegrin language and a Programme for learning the history and cultural heritage of Montenegro for asylum seekers and foreigners under subsidiary protection have been developed. Manuals for teachers who implement this education programme as well as a guide for attendees have also been prepared.

Displaced persons are additionally endangered. For example, in town Berane in northern region, because of poverty, because of numerous floods or endangerment of life. They have little support and they do not have adequate conditions for living, working or studying at home⁵⁴.

Montenegro has been facing the population migrations from other speaking areas for some time. The education of children from another speaking area is provided at all levels of education. The challenge in achieving the education process is the language barrier. Teachers did not receive adequate support in the new situation.⁵⁵

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

General Law on Education and Upbringing - Article 9, states that "Foreign citizens who have temporary residence or permanent residence in Montenegro are equal in exercising the right to education with Montenegrin citizens, in accordance with a special law".

The Law on Primary Education and Upbringing - Article 15 - Pupils who have an obligation to attend primary school, in accordance with this law, and who join classes for the first time and do not know or do not know enough of the language in which the classes are conducted, supplementary classes are organized for them according to the current educational programme, during a maximum of one school year, as a special aid for mastering the language and better involvement in teaching.

The Bureau for Education has developed the following guidelines: *Guidelines for the inclusion of students from other speaking regions in educational institutions in Montenegro and the Guidelines for the evaluation and assessment of students from other speaking areas*.

These Guidelines are reflected in the following:

- o When evaluating and assessing students from other speaking areas, we should start from the fact of their life circumstances (refugee, migration, etc.); facts about insufficient knowledge of the language; facts about the challenges of adapting to a new environment as well as to different plans, programmes and perhaps a different method of working at school.

⁵⁰ While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

⁵¹ Supra note 15.

⁵⁴ The NGO perspective.

⁵⁵ Ombudsman's office https://www.ombudsman.co.me/docs/1702893163_301123_preporuka_mp.pdf

- o When evaluating and assessing students from other speaking areas, individualized planning of assessment elements and criteria for each student is recommended, at the level of teacher professional activities and in cooperation with the professional service of the school. Depending on the assessment of the initial situation for each subject, depending on the knowledge of the language and the assessed capabilities of the students, it is necessary to develop special elements and evaluation criteria taking into account the best interest of the child.
- o Based on the fact that the reading literacy and communication skills of the students are the main obstacle in mastering the foreseen obligations, and that these skills are represented in different degrees in different subjects, it is necessary to separately plan the elements and criteria of evaluation and assessment for each subject. So for example language comprehension is of less importance (although not without importance) in the teaching of mathematics and art education than in the teaching of the subject "Montenegrin-Serbian, Bosnian and Croatian language and literature" (M-SBC) or in the teaching of history.
- o When determining the assessment elements, in addition to knowledge, the student's commitment and his approach to teaching and the obligations he receives from the teacher at school must be included.
- o When planning the elements and criteria of student evaluation and assessment, as well as when planning student exam obligations, it is desirable to actively involve the students themselves (especially in higher grades) and their parents (especially in lower grades). As a result of the involvement of students in this process, the development of student autonomy and a sense of responsibility for fulfilling predetermined obligations and assessment criteria is expected.
- o Acquaintance of students and parents with evaluation and assessment criteria. If they were not actively involved in the process of planning the elements and criteria of evaluation and assessment, as well as when planning the student's examination obligations, the school (every teacher) is obliged to familiarize the students with the elements of monitoring and evaluation (what will be monitored and evaluated), with the evaluation criteria (what is expected of students), with forms of monitoring and evaluation (how will monitoring and evaluation of students take place: oral, written, through the preparation of practical works, etc.).
- o Assessment of the students should be approached individually. It is not desirable to compare the students with other students from the class, but they should be evaluated in relation to their initial state, taking into account the current knowledge of the language and the estimated capabilities of the students.
- o It is desirable to announce the exam obligations to the student. The time and date of the knowledge test can be agreed with parents and/or students. For example, the parent and/or student can be informed about the date of the knowledge test at least seven days in advance, so that the student can prepare. This is especially desirable in situations where the purpose of the test is to evaluate students numerically.
- o It is recommended to use those forms of monitoring and evaluation that involve speaking skills and good knowledge of the M-SBC language to a lesser extent. The level to which the student has mastered a certain outcome can be equally successfully assessed based on the application of expected knowledge, skills, etc. for example practical creation of projects, posters, demonstrations and the like.
- o In all cases of knowledge testing, it is especially important to leave enough time for these students to complete the task. The foreign language students will certainly need more time to read the task and more time to formulate the solution to the tasks.
- o It is not recommended to use questions and tasks, the solution of which requires a high degree of knowledge of the M-SBC language (eg. free compositions and tasks that require a rich vocabulary and developed language expression).
- o When knowledge check tasks and other tests are used for these students, closed-type tasks (where the student is expected to choose one or more correct answers from the ones offered) are more appropriate. When open-ended tasks are used, these students find it easier to complete completion tasks (where the student is expected to fill in a missing term or sentence) than essay-type tasks (where the student is asked to more broadly elaborate and elaborate on the topic).

o Errors in pronunciation or writing need to be responded to by teachers of all subjects (in a way that they will direct the student to master the use of the language as soon as possible), but these errors are not taken into account during evaluation.

o When the goal is numerical evaluation, it is preferable to repeat the exam in which the student failed. To this practice of giving a greater number of chances should be added the obligation of the teacher to determine the causes of the student's failure, as well as the obligation to give him additional support (either in remedial classes or by giving direct instructions in regular classes).

o Providing timely information to parents about the student's progress. In order to prevent failure, and in order to correct possible negative grades as soon as possible, the teacher in charge as the class head is obliged to monitor the progress of these students with special attention and to inform the parents of the students in a timely manner about all changes, especially in the case of student failure.

o To enable students to achieve success in different ways and in different ways. In addition to the fact that these students are specific in terms of insufficient language competence, the fact that each of them is specific in terms of different interests, different tendencies, intentions, etc. should also be taken into account. Based on that, each student should be allowed to achieve success in his own way. For example, someone will demonstrate success through a high level of knowledge of facts and solving problems in a given area, and someone through a high level of dedication and performance of additional obligations.

o Establishing a system of support and assistance for students who, despite regular forms of assistance (additional and supplementary classes), are not able to achieve success on a regular basis. The school must have clearly established and consistently implemented procedures and support systems for students who are unable to achieve the expected performance criteria on their own. One part of the support should take place already in the classroom through the individualized approach of the teacher to each student, by adjusting the requirements to his capabilities, interests and needs. The usual form of support for students is the organization of remedial classes, and if necessary, the school can also organize individual help for the student through consultation with the subject teacher and/or through the provision of peer support (student-mentor, etc.)⁵⁶.

The arrival of people from war-torn Ukraine who were forced to leave their country of origin due to armed conflicts is evident in Montenegro. A large number of children are among them. The Ministry undertook timely activities in order to respond to the developmental and educational needs of children and students from Ukraine and enable their inclusion in the educational process. Institutions were recommended to set up support teams for the integration of children from Ukraine that cooperate with parents/guardians and students. The Ministry has given its consent on increasing the number of classes in schools where a larger number of foreign students have been enrolled. Support in learning the Montenegrin language as a non-native language according to the publicly valid subject programme, with two additional lessons per week, financed from the Budget of the Ministry of Education, was implemented. In cooperation with UNICEF, the Support Programme for the inclusion of children from Ukraine in the educational system of Montenegro, was implemented. During the school year, two teachers were hired, and after their leaving, two more teachers from Ukraine were engaged who provided additional support to students. In cooperation with UNICEF, textbooks for the Montenegrin language as a non-native subject are provided, as well as additional furniture and IT equipment for six elementary schools and four preschool institutions.

Through an online questionnaire, the Ministry obtained the following data (February 2024) from educational institutions regarding support for children from Ukraine during the previous year:

- Supplementary teaching of the subject "Montenegrin - Serbian, Bosnian and Croatian languages" as non-native was attended by 200 students, with 847 classes held.
- In schools, 1,956 hours of supplementary and additional classes (for all subjects) were held, attended by 305 students.

- 728 hours of free activities were realized in which 259 students participated.
- The school teams for the integration of children from Ukraine included 273 teachers who held 146 meetings and implemented 195 activities.
- As support for the students, four Ukrainian teachers were hired who taught 59 lessons.

The UNICEF office in Montenegro published the article on the integration of children from Ukraine, entitled "Classrooms open to children from foreign countries: with the support of the school, everything is easier" <https://www.unicef.org/montenegro/price/u%C4%8Dionice-otvorene-i-za-djecu-iz-stranij-zemalja-uz-podr%C5%A1ku-%C5%A1kole-sve-je-lak%C5%A1e> ⁵⁷

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☒ No

- Please elaborate:

National climate change adaptation measures can affect education in several different ways. These measures often include educational components related to raising awareness, developing new skills, and adapting educational systems to new needs. Here are some key aspects of how these measures affect education:

- Including climate education in the curriculum as well as through non-formal education;
- The development of new skills that will be required by the labour market under the influence of climate change, which implies an increasing degree of use of technologies, renewable energy sources, new methods of production in agriculture, etc.;

With regard to the issue of climate-displaced persons, it has not been dealt with in our plans for adapting to climate change, so there are no concrete measures aimed at combating this phenomenon.

In the previous period, Montenegro adopted key strategic documents related to climate change, such as the "National Strategy in the Field of Climate Change until 2030" and the "National Strategy for Sustainable Development until 2030", together with several sectoral strategies with parts that are related to climate change.

Strengthening awareness and knowledge about climate change, its consequences and ways of adapting to it is recognized as an important issue within the framework of the *National Strategy for Sustainable Development until 2030* ([nacionalna-strategija-odrzivog-razvoja-do-2030-godine \(25\).pdf](#)) where one of the measures for achieving the goals of sustainable development is the understanding of hazard risks, which implies the implementation of education of the population, raising public awareness and introducing *education on hazards into the education system*. Also, the strategy foresees as one of the measures *Capacity building, improving education and raising public awareness about climate change and measures to mitigate it by encouraging cooperation with scientific institutions, introducing the study of climate change in schools and universities and providing the necessary funds for research programmes*. As another sub-measure aimed at improving education for climate change, the strengthening of information and education of the public about mitigating climate change, with the support of the civil sector and the involvement of all interested parties, especially local communities and the private sector, in order to change behavioral habits through awareness of existing problemmes.

In September 2015, the Government of Montenegro adopted the **National Strategy in the field of climate change until 2030** ⁵⁸, which contains measures to reduce and additional reduction of greenhouse gas emissions, a draft of the strategic framework for adapting to climate change, including

⁵⁷ The Ministry of Education, Science and Innovation Work Report 2023

⁵⁸ The National Strategy on Climate Change by 2030, with version in Montenegrin available, the link: <https://www.gov.me/dokumenta/cd1130f8-668b-4fbd-a094-20a04af536aa>

an assessment of the costs and social-economic impacts of implementing the measures provided for in the strategy, as well as the accompanying action plan. The National Strategy in the Field of Climate Change until 2030 is a key policy instrument for climate change management in Montenegro and establishes the Government's obligation to act against climate change in an integrated and multisectoral manner, respecting the international obligations that the country has undertaken under the UNFCCC. The strategy defines a vision until 2030 in order to enable Montenegro to adapt to negative effects and promote low-carbon sustainable development. The National Strategy for Climate Change focuses largely on alignment with the EU legislative framework on climate change. The National Strategy for Climate Change provides the necessary guidelines for mitigation and adaptation measures. The objectives of the strategy are also followed by various means of implementation: strengthening of institutions and governance, education and training of actors, climate change research and technological development, and financing.

In the Report on the Implementation of this Strategy, it is stated that through the cross-curricular programme "Education in the area of disaster risk reduction", and in cooperation with the Bureau of Education, for several years, teachers and professors of primary and secondary schools were trained and numerous presentations were made on this topic to primary and secondary school students.

In order to deal with the challenges brought by climate change in our country, a document was created that is still in the draft stage and is called the ***National Action Plan of Montenegro for Adaptation to Climate Change***⁵⁹.

The integration of the issue of climate change into all sectors and public policies was mostly focused on the issue of mitigation of climate change (mitigation). Considering this fact, there was a need to create a practical and detailed strategic document dedicated exclusively to the adaptation of Montenegro to climate change.

The **National Adaptation Plan (NPP)** is conceived as a strategic instrument, the aim of which is to support the planning, coordination, implementation and monitoring of national efforts in climate risk management. The NPP links international agreements and knowledge with national policy and identifies concrete measures related to the most important climate vulnerabilities in the key sectors of agriculture, water, tourism and health.

Within the document ***National Action Plan of Montenegro for Adaptation to Climate Change***, in the section Intersectoral aspects: priority adaptation measures, the following measures related to education are defined as priority adaptation measures: MS2.1.4 Create educational programmes for schools, institutions of higher education (universities/ lifelong learning) and programmes for competent sector institutions that raise awareness, capacities and preparedness for climate change and its impact.

With regard to **climate change education and raising awareness on the adaptation and mitigation measures to climate change**, at all levels, there is a clear lack of awareness, and capacity to deal with the consequences and preparedness for climate change in Montenegro. There is little general understanding of what and how, and why Montenegro needs to adapt to climate change. This lack of awareness and knowledge contributes to the high vulnerability of communities and infrastructure to climate risks and hinders the possibility of mitigating the impact or making the most of every opportunity that could arise with climate change.

In order to solve this problem, the current ***national action plans***⁶⁰ propose specific measures. Educational programmes will be developed that will be implemented at different levels of the education system, from secondary schools to higher education (universities and lifelong learning

⁵⁹ <https://www.gov.me/dokumenta/b3f1ba22-6310-4785-ab07-def462d032d6>

⁶⁰ The National Action Plan of Montenegro for Adaptation to Climate Change

organizers), and then spread to key government institutions. **Secondary Schools** - School education programmes will be analyzed and updated to more comprehensively include climate change mitigation and adaptation. The new education programme will be accompanied by a public awareness campaign to inform parents, guardians and communities about the importance of climate change education.

Universities and organizers of lifelong learning - The study offer at universities will be analyzed, additional studies and modules will be determined and will be integrated into the offer of universities and organizers of lifelong learning. The new offer of studies and modules will further expand the knowledge and interest of secondary school students in climate change mitigation and adaptation practices and increase the skill level of the future workforce. **For secondary schools and universities/OCUs**, professional development programmes will be organized for teachers to improve their understanding and knowledge of climate change, to acquire skills for effective and engaged teaching of these subjects to pupils and students. Sample lesson plans, teaching materials and resource kits will be made available to institutions in educationally disadvantaged or deprived areas to ensure that all pupils/students have equal learning opportunities. **Government institutions:** The current training offer for government institutions and sector teams will be analysed. A revised training and capacity development programme will be developed to be implemented in all institutions, with mandatory training for key sectors likely to be significantly affected by climate change (including agriculture, water, health and tourism). For these vulnerable sectors, specialized programmes adapted to the risks and needs of employees in the given sector will be developed.

Within *the Third Biennial Updated Report of Montenegro according to the United Nations Convention on Climate Change* it is concluded, among other things, that Montenegro still relies on technical assistance when it comes to modeling greenhouse gas emissions, as well as modeling the impact of climate change at the national and local level. As these activities require special professional knowledge and skills, and in the absence of a national educational programme and professional training in this area, it is expected that national institutions continue to count on technical assistance from international institutions. Certainly, the future plans of the competent institutions must go in the direction of a permanent institutional solution to these activities, which are crucial in the credible long-term planning of climate neutrality and resistance to negative climate impacts. In *the Final Report of the Ministry of Interior Affairs on the implementation of the Strategy for Disaster Risk Reduction for the period 2018-2023*, it is stated that the following was achieved within the framework of strategic goal no. 1: Raising awareness of citizens and encouraging institutions to implement activities in the area of disaster risk reduction: "in the past six-year period, out of a total of 25 planned, 23 activities were implemented. Good practices have been established, primarily in the field of promotion and education of citizens, and by including the topics of disaster risk reduction in the curriculum of educational institutions, which is the best model of continuity of awareness raising in the field of disaster risk reduction. In the past period, a large number of workshops, seminars, educations on various topics were held. In the past six-year period, 65 accredited two-day seminars were held for teachers and professional associates for education in the application of the interdisciplinary programme "Education in the field of disaster risk reduction", where 1730 participants were trained.

*The draft Strategy for Disaster Risk Reduction for the period 2025-2030 with an action plan for 2025-2026*⁶¹ of the Ministry of Internal Affairs defines several measures that include the area of education through increasing information and risk preparedness of the population supports SDG 1, 3 and 4 through education, awareness raising and capacity building to ensure that communities can adequately respond to the challenges brought by climate change and disaster risks. In this strategy, one of the goals is aimed at strengthening disaster risk management through the operational goal of forecasting - improving risk assessment, forecasting and disaster risk management planning. As part of this operational goal, the organization of the seminar "Education in the field of disaster risk reduction" is foreseen. It is an accredited two-day seminar for teachers and professional associates for education in

the application of the interdisciplinary program "Education in the field of disaster risk reduction". Five seminars are planned annually. Seminars are to be held at the local/regional level. The Bureau for Education will send letters to educational institutions about the time, place, agenda of the seminar and the professional profile of the teachers participating in the seminar. The aim of the seminar is: to raise the level of awareness and knowledge of directors of educational institutions, teachers and professional associates about education in situations caused by various hazards, as well as measures of prevention, preparedness, intervention and recovery.

Within the same Strategy, the Strategic goal 2: Strengthening disaster risk management, operational goal 1: Forecasting - improvement of risk assessment, forecasting and disaster risk management planning through the implementation of the activity of creating an optional subject in secondary school entitled "The First Aid" is defined. The Bureau for Education or the Red Cross of Montenegro will start the procedures for creating an elective programme for primary and secondary schools. An intersectoral commission is formed from representatives of the Red Cross, the Bureau for Education and the Institute for Public Health. The commission should prepare a working version of the programme within six months. After that, a public debate is planned to be organized where relevant suggestions for the development of the final version of the programme will be considered. After that, the programme, with the expert support of the Bureau for Education is to be submitted to the National Council for Education for adoption. Then the programmes becomes publicly valid. Students in elementary and high school can then choose it as elective subject. The Strategic Objective 2: Strengthening disaster risk management, the operative goal of the preparations was defined - increasing the information and preparedness of the population in terms of risks through the implementation of educational activities for managers of residential buildings. The essence of the activity is capacity building of managers in residential buildings to take preventive measures and activities in case of earthquakes, fires, extreme weather events and other risks, in order to reduce victims, damages and losses in buildings by engaging managers. The aim of these trainings is to raise the level of knowledge and awareness, as well as to prepare managers of the buildings for a more efficient response in case of certain disasters and accidents.⁶²

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

Some of the cases reported would be parents not been able to enroll their children in school because of the lack of adequate documentation (eg. identity number card) or due to alleged lack of place for their enrollment as informed by in some schools.⁶³

People with disabilities:

- | | |
|---|---|
| ☒ Legislation provides for their right to education | ☐ Mainstream teachers are specifically trained on disabilities |
| ☒ Policy measures aim to enhance their right to education | ☐ Teachers are trained to combat stigmatisation ⁶⁴ |
| ☒ Inclusion in mainstream schools is ensured | ☒ Auxiliary assistance is provided |

⁶² The comprehensive report submitted by the Office for Sustainable Development of the General Secretariat of the Government

⁶³ Comment by the NGO sector

⁶⁴ Supra note 15.

- | | |
|---|---|
| ☒ Special schools are used as resource centers to inclusive schools | ☒ Curricula and teaching and learning methods are adapted |
| ☒ Positive or affirmative action measures are provided | ☒ Curricula are rid of all stereotypes ⁶⁵ and bias |
| ☐ Financial incentives and fellowships are provided | ☒ Education infrastructure and learning materials are adapted |
| ☐ Other | |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Law on the Education of Children with Special Educational Needs, in the Article 5 states that: Upbringing and education, that is, habilitation and rehabilitation of children with special educational needs is mandatory from the moment the child's special educational needs are discovered. The upbringing and education of children with special educational needs provides the level of education that corresponds to their physical, intellectual, emotional and social development.

Article 6 of the same Law (The right to choose a programme) prescribes that:

A parent, adoptive parent or guardian (hereinafter: parent) of a child with special educational needs has the right to participate in the selection of the education programme, in accordance with this law.

A parent, or a child with special educational needs, has the right to change the education programme during schooling, in accordance with the law.

The upbringing and education of children with special educational needs is carried out in a preschool institution, in an institution of basic and general secondary and vocational education and upbringing (hereinafter: school) and in a resource center.

The space, equipment and teaching aids of preschool institutions, schools and resource centers must be adapted to children with special educational needs, in accordance with the educational programme.

For the upbringing and education of children with special educational needs, the school and the resource center are obliged to provide access to the facility and adequate educational technology, as a form of additional teaching aids (enlarged print, Braille, etc.).

Prohibition of discrimination is incorporated in **Article 8a of the same Law**, as follows: "Physical, psychological and social violence is not allowed in the school and resource center; abuse and neglect of children and students; physical punishment and personal insult, that is, sexual abuse of children and students or employees and any other form of discrimination in accordance with a special law."

Brief overview of the key inclusive mechanisms in place:

The **mobile support services for inclusive education**. As it was the practice in the last couple of years in providing this type of service, in 2023 the support was provided for 340 students with special educational needs, as well as through the advisory activities for teachers and parents. Non-discrimination workshops were held in primary schools, the Index of Inclusivity was implemented and the Day about the Inclusion was celebrated.

The support from the resource centers is provided in the form of the staff visits to regular schools, in the production of the materials for working by using assistive technology (Braille textbooks etc.). Along with

inclusive education in formal schools and universities, there are three resource centres for primary and secondary education in Montenegro educating around 150 SEN children. These resource centres also provide early intervention service programmes, relevant training for teachers and professional staff, preparation for entering primary education etc.

The support through **the early intervention activities** which are carried out in the resource centers includes preschool age children with special needs.

During 2023, seven elementary schools in Montenegro with integrated classes in which a special educational programme is implemented provided support to other educational institutions in the local community through counseling, education, and provision of individual support to students. The same year, 28 consultations were held for schools that needed support in implementing inclusive education.

The regular analyses of the Individual development education plans (IDEP) are being conducted, for schools, based on which the educational institutions make required corrections in relation to their work with SEN students.

The Innovation in Inclusive Education Programme (cooperation between the Bureau for Education Services and the University of Montenegro, Faculty of Natural Science and Mathematics and Faculty for Electrotechnics) resulted in the creation of 10 sets of didactic material made with 3D printing (BIG SEE design award, Ljubljana) which were donated to primary schools and 10 sets of cutlery intended for preschool institutions in order to acquire self-care skills. Within the same programme, the digital app www.vladamsituaciom.edu.me was created, which contains 18 societal stories which purpose is the development of social skills of children with special educational needs, enhanced with the content for learning pre-reading and reading skills - available on the School Portal⁶⁶.

The Danish Margit Nilsen Foundation donated funds for the realization of two five-day trainings (**Applied ABA behavior analysis as a support in inclusive education**) for 60 professional associates. With the support of the Council of Europe, training for the teaching staff of the University of Montenegro on support to learning and participation of students with disabilities, was implemented. With the Special Olympics, 60 new educational institutions were included in the United Champion Schools programme, and 1,500 young people with and without intellectual disabilities were included in the Inclusive Sport programme, 550 new educators, teachers, professional associates and teaching assistants were trained, which resulted in the engagement of 3,000 children and of young people in school communities.

With UNICEF, the Ministry of Health and the Association of Psychologists of Montenegro piloted the Programme **Support to family-oriented early intervention services in local communities** - Kotor and Bijelo Polje. A preliminary survey was conducted, a set of four trainings was conducted, and teams were formed that worked with 60 families. In addition, the Resource Center Podgorica is involved and now regularly implements this concept. The training programme is accredited by the Bureau for Social and Child Protection, and a request for accreditation has been submitted to the Bureau for Education Services⁶⁷.

The Vocational Education Development Strategy in Montenegro (2020-2024) defines as one of its operational goals: Vocational education that enables skills, competences and qualifications for employability, lifelong learning, inclusiveness, personal development and active citizenship of individuals. With this, a series of measures and activities that prevent discrimination of all kinds are defined, including persons with disabilities, i.e. that enable a flexible system of vocational education in accordance with the individual capabilities of students. **The inclusive measures for persons with disabilities in the vocational education system** envisage an individualized approach from entering the VET system (Individual Transition Plan 1 - which is implemented by the primary school in cooperation with the student, parents and high school), while attending the educational programme, the development of an individual-development

⁶⁶ School teachers' portal: <https://www.skolskiportal.edu.me/Pages/Inkluzivnoobrazovanje.aspx>

⁶⁷ The Ministry of Education, Science and Innovation work reports

educational programme is foreseen for every student enrolled in the educational programme by decision of the guidance committee, and for all other students where the teachers deem it necessary. Individual support provided also when exiting the VET system and moving to a higher level of education, i.e. to the labour market, through the Individual Transition Plan 3 process, i.e. 2.

With regard to teacher professional development, **the Catalogue of Professional Training Programmes for Teachers for the years 2023-2025 in special areas foresees a total of 10 different programmes for professional training of teachers for working with students with special educational needs and vulnerable groups, as well as with gifted students.** The aim of these programmes is to sensitize teachers to the approach and non-discrimination of children with developmental disabilities and difficulties, and then to learn to individualize teaching.

In **vocational education**, educational programmes are designed as programmes of broad profiles, based on vocational qualifications that are related, of the same or different level, and this enables children to be together in the classes of their peers, and to achieve vocational and educational level qualifications in accordance with their capabilities. and pace, which in terms of socialization is very important for all students. Hence, vocational education with modularized curricula and individualized approach opens opportunities for vulnerable and marginalized groups (SEN, Roma, etc.) to complete levels of education and obtain qualifications at their own preference, and abilities, thus offering fair chances of employment and continuation of education. Consequently, **in the Professional Training Programme Catalogue published by the Center for Vocational Education, there are 5 programmes intended for training of teachers to work with students with developmental disabilities.** Professional training programmes for teachers are implemented at the request of schools and at the initiative of the Center for Vocational Education. Trainings for individual planning and implementation of lessons for children with special educational needs are among the most requested trainings by teachers.

In adult education, the methodology for developing education programmes for adults defines the possibility of adapting the programme to vulnerable groups and individualization⁶⁸.

Within the activities under the **Youth Guarantee National implementation plan by 2026** (adopted in July 2024) in Montenegro, the mapping of youth who are not in education, employment or training (NEET) is underway, with the aim to provide comprehensive data on the overall number of NEET population. The aim of the European Union Programme “Youth Guarantee” is to support young people and facilitate their rapid inclusion in the labour market right after they complete their education or training.

According to the **Analysis of the progress in the implementation of the Inclusive Education Strategy 2019-2025**, an increased inclusion of children with special educational needs in regular teaching activities is recorded, with significant increase of 7% in preschool and 5% recorded in secondary education.

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

It is noticeable that there is a legally prescribed non-discrimination and inclusion for children with developmental disabilities, but in reality it happens differently. The number of teaching assistants (about 300 at the national level) is insufficient in relation to the number of children who need this type of support, although the exact number is not known because we do not have the records. There is a lack of assistants for children who have the decision issued by the guidance committee. According to estimates made by the non-governmental organizations that gather parents of children with disabilities, Montenegro needs about

⁶⁸ The Vocational Education Centre

2,500 assistants. Teachers are not trained to work with children with disabilities and they make and then work on IDEPs. This is key complaint by the parents whose children are included in regular classes⁶⁹.

Students from poor households:

- | | |
|--|---|
| ☐ Financial incentives and fellowships for school enrolment are provided | ☐ Teachers are trained to combat stigmatisation ⁷⁰ |
| ☐ Transport, meals and education material are subsidised or provided free of charge beyond compulsory education | ☒ Curricula are rid of all stereotypes ⁷¹ and bias |
| ☐ Positive or affirmative action measures are provided | |
| ☒ Other: | |

The particular cases from the the Ombudsman's office practice show examples of nonexistence of specific incentive measures for children whose families are financially disadvantaged⁷².

The Law on Primary Education and Upbringing in Article 2 b prescribes that: Every student has the right to free textbooks for elementary school, at the expense of the state budget.

According to the General Law on Education and Training - Article 130, the student has the right to:

- 1) accommodation and food in the student dormitory;
- 2) scholarship for the talented;
- 2a) scholarship for deficient qualifications;
- 3) transportation participation.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Bureau for Education continuously offers training for inclusive education in the broadest sense, as well as the training that deals with the topic of stigmatization of individuals or social groups. The training offer includes teacher training for working with students from vulnerable categories, members of the RE population and the immigrant population.

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

The challenges perceived include school drop out, family violence caused by poverty, children's behavioral problems, isolation, emotional and peer violence, lower achievements.

The NGO for the support of RE population provided their reflexion on specific cases of discrimination perceived such as inadequate negative grading of RE students with disregard for their position, status, poverty and non-conditional living conditions. Also, in certain cases there is failure by certain schools to fulfill the legal obligation of holding supplementary classes to children from the RE background.

⁶⁹ NGO "Parents' Association" Montenegro

⁷⁰ Supra note 15.

⁷¹ Supra note 16.

⁷² https://www.ombudsman.co.me/docs/1606472719_23112020-preporuka-sp.pdf, the Ombudsman office

2. Progress made with respect to implementing the right to education across all levels and forms of education

2.1 Early childhood care and education

For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation⁷³ and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education⁷⁴. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.

• Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- | | |
|--|---|
| ☐ Prior to pre-primary education, ECCE services are free | ☒ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| ☒ Prior to pre-primary education, ECCE services are affordable | |
| ☒ ECCE services are accessible on a non-discriminatory basis | |

- Please elaborate further on the measures taken:

Pre-school education and care and educational work in early childhood (nursery) is available to all children in Montenegro. It is implemented in public and private licensed preschool institutions. The coverage of children of this age (0-3 years) is significantly lower compared to children of kindergarten age (3-6 years). The price of children's stay is affordable in public preschool institutions.

The services of care and educational work in the nursery age (0-3 years) are available on a non-discriminatory basis. When enrolling, all children of both sexes, of different nationalities, religions and social origins, and children with special educational needs, are treated equally. In mixed areas (Ulcinj, Tuzi, Bar and Plav-Gusinje) educational work was organized in the Albanian language, respecting their specificities. Preschool upbringing and education is available to children of the RE population, although their presence at the age of 0 to 3 is rare. In recent years, an increase in the number of children of foreign nationals (Russia, Ukraine, Turkey...) has been observed in preschool institutions.

The services offered in preschool institutions respect a holistic approach and integrated learning, which means that all areas of children's development are equally stimulated. Children's nutrition is generally monitored by nutritionists. Nurses monitor the health and safety of children. Children with special educational needs receive a special part of support from professional associates (speech therapist, defectologist, psychologist, pedagogue).

The preschool institutions have the obligation to organize a shorter programme aimed to prepare children for primary school, for children who are not included in the preschool primary programme. It

⁷³ Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

⁷⁴ Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

is organized in terms that do not disturb the regular work and programme. The programme is implemented for children aged five years and starting primary school and is free of charge.

Please find here the statistics from the Montenegrin Management Authority for the Statistics (MONSTAT), on the number of enrolled children in preschool education for 2021, 2022 and 2023, by gender:

School year 2021/2022: Total number of preschool children 23,008, of which 12,022 boys and 10,986 girls.

School year 2022/2023: Total number of children 24,663, of which 12,948 boys, 11,715 girls.

School year 2023/2024: Total number of children is 25,077, of which 13,084 were boys, 11,993 were girls.

- Is compulsory and free of charge pre-primary education available?

☐ Pre-primary education is compulsory. Please provide the age of enrolment and duration:

☒ Pre-primary education is **not** compulsory.

☐ Pre-primary education is free of charge for all. Please provide the duration and indicate the extent to which it is free:

Pre-school education is optional. It is implemented in public and private licensed preschool institutions. It is implemented from 0 until the child starts elementary school (6). It can be implemented as a full-day, half-day stay, a three-hour programme, a shorter, specialized and occasional programme.

☒ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

-The Law on Preschool Education and Care

-The Rulebook on the detailed methods, procedure and criteria for enrolling children in preschool institutions.

Preschool education is not free for all children. It is implemented in public and private licensed preschool institutions. In public pre-school institutions, parents subsidize the child's nutrition, while other costs are borne by the state budget. In private licensed preschool institutions, parents pay the entire amount for the child's stay. Preschool education is free for members of the RE population.

Preschool upbringing and education is regulated by the General Law on Education and the Law on Preschool Education and Education, the Convention on Children's Rights, the Law on Social Security...In public preschool institutions, parents do not pay an enrollment fee when enrolling in the institution. Didactic materials, consumables (crayons, felt-tip pens, paper, drawing blocks, plasticine, etc.) are provided by the institution in accordance with the financial possibilities, and some are provided by parents on a voluntary basis. Uniforms for children are not mandatory. Transportation of children is organized only for children of the RE population. In private licensed pre-school institutions, all expenses are covered by a monthly payment for the child's stay, regulated by the contract⁷⁵.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

☒ Limited access

☐ Poor learning outcomes

☒ Issues of equity and inclusion

☒ Low number of professionally trained educators

☐ Poor quality programmes

☒ Lack of support to families

☐ Other:

- Please elaborate. Brief quantitative information may be added.

Preschool education faces problems in providing adequate space - overload of educational groups and insufficient number of preschool institutions in relation to the population of the town/city⁷⁶.

An obvious lack of teaching and non-teaching staff, which makes it difficult to work in the institutions that normally have too many groups, a large number of SEN children (i.e. with guidance decision) and an insufficient number of assistants for SEN children, overbooking of the spatial capacities of preschool institutions.

The overbooking of kindergartens and the lack of educational staff are main challenges in the work of preschool institutions.

Active efforts are being made to expand the capacity of preschool institutions through construction, adaptation of existing institutions and reconstruction. For reference, in 2023 and 2024, the number of educational units was increased for 4 new educational units of the kindergartens. New teaching and medical staff were employed. The opportunity for early development and learning of children from the general population has been improved, with a special emphasis on children from vulnerable groups:

⁷⁵ Comment made by the Bureau for Education Services

⁷⁶ https://www.ombudsman.co.me/docs/1672321093_622-668-670%20misljenje%20vrtici%20preporuke%20pdf.pdf
https://www.ombudsman.co.me/docs/1513932899_08122017-preporuka-djv.pdf

children of the Roma and Egyptian population. In order to improve the spatial capacities: one new interactive service location was opened, three new educational units, one extended stay and three license supplements were implemented. One public kindergarten was opened in Podgorica and three new private kindergartens were licensed in 2023 and 2024. The construction of new kindergartens is planned in order to resolve the lack of spatial capacities, but rigid tender procedures make it much more difficult to start the works.

The problem analysis, according to the Preschool Education Strategy, highlights inadequate coverage of preschool education and upbringing as one of the challenges, due to inflexible norms and insufficient spatial capacities, which result in inadequate working conditions, too many children in one group, insufficient number of educators and professional associates, inadequate quality of services.

All children of preschool age have the right to preschool upbringing and education. In some public preschool institutions, due to limited spatial capacities, the number of children in educational groups has significantly exceeded the norm. Certain adapted spaces for children's stay are not sufficiently adequate (square footage, equipment, sanitary and hygienic conditions...). This is characteristic for the central region of Montenegro - Podgorica and the southern region - Budva, Bar, Ulcinj. Despite the opening of new educational units, a deficit of spatial capacities is still observed, which is conditioned by the increased inclusion of children as well as the demographic movement of the population towards the central and southern parts of Montenegro.

In some private licensed preschool institutions, there is a lack of professionally trained staff (teachers). This problem occasionally manifests itself in the public preschool institutions as well.

2.2 Primary and secondary education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide "12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory."

Primary education

- Please provide the age of enrolment and duration of primary education:

Primary education in Montenegro is compulsory and free from 6 - 15 years, in accordance with the General Law on Education and the Law on Primary Education. Primary education lasts for nine years.

There is an adapted primary school programme for adult attendees and it is implemented by 4 primary schools in Montenegro. There is a need to allocate larger financial resources for this purpose so that this program could be implemented in all regions of Montenegro and be available to all participants.

Manuals have been prepared for the teaching staff who teach compulsory and optional subjects, the teaching staff who implement the basic education program for adults are andragogically trained.

- Is primary education compulsory and free of charge?

☒ Primary education is compulsory

☐ Primary education is **not** compulsory.

☒ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

General Law on Education and Upbringing and Law on Primary Education and Upbringing;

The Law on Primary Education and Upbringing - Availability of education, Article 2a: Primary education and upbringing is available to all persons and cannot be directly or indirectly limited on the basis of: gender, race, skin color, language, religion, marital status, political or other conviction, national, ethnic or other origin, property status, disability, or on another similar basis, position or circumstances, in accordance with a special law.

Article 2b of the Law on Primary Education: Every student has the right to free textbooks for primary school, at the expense of the state budget.

Elementary school obligation is regulated by Article 4 of the same Law, stating that "Primary education and upbringing is mandatory for all children between the ages of six and 15".

In relation to SDG target 4.1 – ensure that all girls and boys complete free, equitable and quality primary and secondary education – significant efforts have been invested into making education fully accessible. Primary and secondary education are free-of-charge and since school year 2021/2022 textbooks have also been provided free-of-charge for all pupils of primary schools⁷⁷.

- What challenges were encountered in realizing primary education?

☐ Limited access

☒ Issues of equity and inclusion

☐ High dropout rates

☒ Poor quality programmes

☐ Other:

☒ Poor learning outcomes in:

Foundation literacy

Numeracy

Social and emotional learning

Others

☒ Disparity in learning outcomes

☒ Low number of professionally trained teachers

Lack of teaching staff for certain subjects.

Lack of space in a certain number of town elementary schools.

Challenges are poor infrastructure in schools, especially in the territory of Podgorica. Teaching takes place in several shifts with limited space and scarce teaching aids. This is particularly reflected in STEM subjects, where classrooms are not adequately equipped with teaching aids for effective teaching. Also, poor results on PISA tests are a special challenge. In addition to extensive subject programmes in elementary school, a special challenge is the implementation of teaching, which should be methodologically diverse, interactive, and the teaching process should be dominated by student learning

⁷⁷ <https://www.gov.me/en/documents/f9db711f-41f6-4327-b2d8-20628c296940>

and not teacher teaching. The digital equipment of schools is at a low level and significant funds should be invested in order to bring it to the optimal level. Poor internet connection in rural areas is also a challenge.

- Please elaborate. Brief quantitative information may be added.

Secondary education

In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.

- Please provide the age of enrolment and duration of lower secondary education:

The Law on Gymnasium and the Law on Vocational Education prescribe general conditions for enrollment in upper secondary education (general secondary and secondary vocational education).

In accordance with **the Law on Gymnasium**, a person who has completed primary education and is less than 17 years of age can be enrolled in the first grade of a grammar school, that is, in the educational programme of general secondary education. General secondary education (gymnasium education) lasts four years.

In accordance with **the Law on Vocational Education**, vocational education is implemented as:

- lower secondary vocational education lasting two years;
- secondary vocational education lasting three or four years;
- higher vocational education lasting two years, as a continuation of secondary vocational non-university education.

A person who has completed elementary school and is no older than 17 years of age can enroll in a school for the acquisition of lower and secondary vocational education.

In accordance with **the Law on Vocational Education**, vocational schools are:

- 1) two-year vocational school;
- 2) three-year vocational school;
- 3) four-year vocational school;
- 4) higher vocational school;
- 5) art school.

In the two-year vocational school, the qualification of the level of lower vocational education is acquired for two years.

In a three-year or four-year vocational school, the qualification of the secondary vocational education level is acquired for three or four years.

In the art school, the qualification of the level of secondary professional education is acquired for four years.

In the higher vocational school, the qualification of the level of higher vocational education is acquired for a duration of two years.

With the acquisition of the education level qualification from paragr. 1, 2 and 3 of this article, appropriate professional qualifications are acquired, which are part of the national qualifications framework.

A person can enroll in a two-year lower vocational school after having completed:.

- elementary school;
- elementary school according to an adapted programme;
- at least the seventh grade of elementary school, and attended classes regularly until the age of 15.

- Please provide the age of enrolment and duration of upper secondary education:

In upper vocational school, in accordance with the educational programme, can be enrolled a person who has completed:

- four-year secondary school (17-18 years old),
- three-year vocational school and passed the master's exam (17-18 years old).

In the higher vocational school, the qualification of the level of higher vocational education is acquired for a duration of two years.

According to the **the Law on Vocational Education, upper secondary education** in Montenegro refers to „vocational education lasting two years, as a continuation of secondary vocational non-university education“. The qualification obtained is the qualification of the upper secondary education level. This qualification corresponds with the 5th level qualification in the European Qualifications Framework.

The Law on National Vocational Qualifications determines three types of qualifications: education qualifications, vocational qualifications and ‘additional’ qualifications. According to the Law, students can acquire education level qualifications by completing education programmes of formal education which are confirmed with the diploma. When obtained this diploma, student can enter into the labour market or continue education. By completing such education programmes student can acquire two or more vocational qualifications, depending whether the education programme is based on two or more occupational standards and qualification standards. Providers of such education are formal education institutions, i.e. schools. On the other hand, vocational qualifications are acquired by completion of a module of the educational programme of formal education, completion of short non-formal learning programmes, by direct verification of previously acquired knowledge or by recognition of foreign certificates on the acquired vocational qualification. Vocational qualifications are acquired for the purpose of employment and can be taken into consideration for the completion of the qualifications of the level of education. Acquired vocational qualification is confirmed with the certificate. Providers of such education are schools, providers of adult education, higher and technical institutes, academies etc.

This type of vocational education with modularized curricula and individualized approach opens opportunities for vulnerable and marginalized groups (SEN, Roma, etc.) to complete levels of education and obtain qualifications at their own preference, and abilities, thus offering fair chances of employment and continuation of education.

- Is lower and upper secondary education compulsory and free of charge?

☐ Lower secondary education is compulsory.

☒ Lower secondary education is **not** compulsory.

☒ Lower secondary education is free of charge.

☐ Lower secondary education is **not** free of charge.

☐ Upper secondary education is compulsory.

☒ Upper secondary education is **not** compulsory.

☒ Upper secondary education is free of charge

☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

The Law on Vocational Education, Article 1 prescribes that: Vocational education is acquired at the level of lower, secondary and higher vocational education, in the manner and under the conditions prescribed by this law.



Zakon o nacionalnim
strucnim kvalifikacijam

Enclosed here is **the Law on the National Vocational Qualifications** (in Montenegrin)

Article 2a of the Vocational Education Law, under 'Scholarships' prescribes that for the acquisition of vocational education in an institution that is financed from public revenues, a regular student, that is, an attendee at a higher vocational school (hereinafter: student) does not pay school fees.

Secondary education (general secondary and secondary vocational education) in Montenegro is regulated **by the General Law on Education and Training, the Law on Vocational Education and the Law on Gymnasium.**

The Strategy for the Development of Vocational Education in Montenegro (2020-2024) defines the strategic goal and operational goals of the development of professional (i.e. vocational) education. The strategic goal of the development of vocational education is: A quality and inclusive system of vocational education that is the basis for lifelong learning, economic and social integration, personal and professional development of the individual, with an effective system of management and financing.

In public state vocational schools and academies in which lower, secondary and higher vocational education programmes are implemented, education is free of charge. Other expenses - textbooks, supplies, equipment, transportation, etc., are not covered by the state and the fees for it are borne by the parents.

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labour laws.

Yes ☒ No ☐

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

The Labour Law in Article 20 prescribes general and special conditions for establishing an employment relationship. There are two general requirements: 15 years of age and general health. General terms and conditions apply to all persons who wish to establish an employment relationship on the territory of Montenegro. The age of 15 years represents the age limit when a person acquires general labour legal capacity.

The novelty introduced in **the Labour Law**, which entered into force on January 7, 2020, is an exception in relation to persons who are 15 and in compulsory primary schooling and who in that case cannot establish an employment relationship as long as compulsory primary schooling lasts.

In **Article 22 on the Conditions for employing persons younger than 18, the Labour Law** stipulates that an employment contract can be concluded with a person younger than 18 years of age, with the necessary written consent of parents, adoptive parents, foster parents or guardians, if such work does not endanger his health, development, ethics and education, i.e. if such work is not prohibited by law. A person under the age of 18 can conclude an employment contract only on the basis of the findings of the competent health authority, which determines his ability to perform the work for which the employment contract is concluded and that such work is not harmful to his health.

- What challenges were encountered in realizing secondary education?

- | | |
|---|---|
| ☒ Limited access | ☒ Poor learning outcomes |
| ☐ Issues of equity and inclusion | ☒ Low readiness of primary graduates |
| ☒ High dropout rates | ☒ Low number of professionally trained teachers |
| ☐ Poor quality programmes | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

Although a sufficient number of students enroll in STEM study programmes, a small number of them is determined to work in teaching upon graduation, which results in a lack of teachers of these profiles in secondary education.

2.3 Higher education

For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3⁷⁸, and target 4.4⁷⁹. Article 4 of the Convention requires states to make “higher education equally accessible to all on the basis of individual capacity”. Article 13 of the International Covenant on Economic, Social and Cultural

⁷⁸ Which calls on states to “ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university”.

⁷⁹ Which recommends to “substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship”.

Rights (1966) further adds that this should be pursued by “every appropriate means, and in particular by the progressive introduction of free education”. Higher education includes technical and vocational education and training.

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☒ Higher education is free of charge
- ☒ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☒ Higher education is accessible through financial incentives and scholarships
- ☒ Higher education is accessible through positive or affirmative action measures
- ☒ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☒ Other:

Through the implementation of programmes aimed at building professional capacities of university professors. For example, the training for the teaching staff of the University of Montenegro on support to learning and participation of students with disabilities, implemented with the support of the Council of Europe⁸⁰.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

Amendments to the Law on Higher Education from 2017 introduced a new model of studying (3+2+3) and practical classes as a mandatory part of study programmes, in the scope of minimum 25%. **The new law also made bachelor’s and master’s studies free-of-charge in public institutions that enrol more than 3,500 students in public institutions every year**, to ensure higher accessibility to higher education by the best pupils, regardless of their social status. In addition to this, Montenegro established the Agency for Control and Quality Assurance for Higher Education. The Law on Incentive Measures for the Development of Research and Innovations was adopted in 2021⁸¹.

Law on Higher Education, published in the "Official Gazette of Montenegro", no. 44/2014, 52/2014, 47/2015, 40/2016, 42/2017, 71/2017, 55/2018, 3/2019, 17/2019 - second law, 47/2019, 72/2019, 74/2020 , 104/2021, 86/2022, 86/2022-I and 125/2023. Several articles of the Law which regulate the right to higher education are mentioned below:

“Availability of higher education, Article 6:

Higher education is available to all persons and cannot be directly or indirectly limited on the basis of: sex, race, marital status, color, language, religion, political or other conviction, national, ethnic or other origin, financial status, disability or other similar grounds, position or circumstances, in accordance with a special law.

⁸⁰ The Bureau for Education Services of Montenegro

⁸¹ <https://www.gov.me/en/documents/f9db711f-41f6-4327-b2d8-20628c296940> , pp. 56

Supervision, Article 8:

Supervision over the implementation of the provisions of this law is carried out by the state administration body responsible for education affairs (hereinafter: the Ministry), in accordance with the law.

Inspection supervision over the work of higher education institutions is carried out by the competent educational inspection.

Article 22, Establishment of an institution:

A public institution is founded by the state.

A private institution can be established by domestic and foreign legal or natural persons.

Number of students to enroll, Article 99:

The institution determines the number of students enrolled in the study programs it organizes, which cannot be greater than the number determined in the license.

In cases where the number of qualified candidates for enrollment is greater than the number of publicly funded places in any study program, candidates can enroll in places for which tuition is paid, based on the criteria from Article 93 of this law, up to the number determined in the competition.

Exceptionally from paragraph 2 of this article, if the candidate is a person with a disability, the principle of affirmative action is implemented.

Registration of foreign citizens, Article 100:

A foreigner has the right to enroll in study programmes in Montenegro under the same conditions as Montenegrin citizens, in accordance with this law and the statute of the institution.

Student rights, Article 103:

The student has the right to:

- 1) to quality education and objective assessment;
- 2) to declare the quality of work of the academic staff;
- 3) **to appeal in case of violation of his right established by the general act of the institution;**
- 4) on suspension of rights and obligations during pregnancy, parental leave, prolonged illness and in other justified cases in accordance with the statute of the institution;
- 5) to attend lectures, seminars and other types of teaching;
- 6) to use libraries, computer rooms and other services provided by the institution to students;
- 7) to elect and be elected to the bodies of the institution, in accordance with this law and the statute of the institution;
- 8) representation of at least 20% in relation to the total number of members in expert bodies and management bodies;
- 9) to exercise rights in the area of student standards;
- 10) **on equality and protection against discrimination; and**
- 11) **to exercise other rights in accordance with this law and the statute of the institution.**

The method of exercising the rights referred to in paragraph 1 of this article is regulated in more detail by the statute of the institution.

Protection of students' rights, Article 105:

The student has the right to challenge any decision of the institution, which violates his right established by law, statute or other act, before the competent court.

Student Parliament, Article 112:

The Student Parliament is an institutional form of organizing students, which is autonomous in its work and authorized to represent and protect the rights and interests of students.

The student parliament is formed in the institution, and it is made up of student representatives.

The competence, method of election, as well as the organization of the work of the student parliament are regulated by the statute of the student parliament”.

Public institutions are financed from the budget of Montenegro, as well as from their own resources (tuition and other fees paid by students, intellectual and other services, donations, gifts and legacies, projects, etc.). Private institutions are financed from their own funds, but they can be financed from the budget provided that they organize study programmes of public interest that are not organized at a public institution in Montenegro. A public institution, in accordance with the Law on Higher Education, acquires funds from the Budget of Montenegro based on norms and standards for financing public institutions, taking into account the number of students determined in the license, the cost per student for a specific study program and the quality assessment of the work of the institution. The financing agreement between the Government and the University of Montenegro was signed in 2019 for a period of three years.

At the moment, there are four universities and three independent faculties. Regarding management positions at the University of Montenegro, the latest data are encouraging in terms of gender-sensitive structure, and show that the ratio of male to female managers is 13:09. Nevertheless, the promotion of women in management positions remains one of the priorities. Financing of higher education has been significantly improved. From the academic year 2017/2018. for the first time, studies at public institutions are free for undergraduate students. Over 3,500 students were enrolled in the first year of undergraduate studies at the University of Montenegro and the Faculty of Montenegrin Language, according to the new study model and without paying tuition fees for all study programs. Master's studies according to the reformed study model are free from the study year 2020/2021 year. Master's studies according to the reformed study model are free from the study year 2020/2021 year.

In achieving the mission of higher education, the need for it to be open and accessible to everyone, based on stable funding and established professional services, is emphasized.

For persons with disabilities, the principle of affirmative action is implemented - Individual Transition Plan 3 (ITP-3), which refers to the transition of students with disabilities from high school to university. A Guide for adapting learning and participation of students was prepared and printed. In order to obtain a license, institutions are expected to provide access and stay for persons with disabilities.

Since 2014, young people with disabilities have free education at all institutions of higher education in Montenegro. As part of the SINCHE50 (Tempus) project implemented by UCG, UDG and the Mediterranean University, significant equipment was provided that facilitates adaptation to the needs of people with disabilities and all employees completed training (administration, teachers, associates). Also, it is important to note that as a result of the Tempus project "FOSFIM 2012-2016" they started with the realization of the Master's study "Inclusive Education" at the Faculty of Philosophy, UCG. The Erasmus plus project "Trans2Work Transition for Higher education students with disabilities in Serbia, Bosnia and Herzegovina and Montenegro" was also implemented, with the aim of improving the services of higher education institutions in order to support students with disabilities in their transition from higher education to work, following the policy EU; connecting higher education with a working environment that supports people with disabilities. Also, we should mention the Erasmus plus project "Inclusive tertiary education in Western Balkans - IDEA"⁵¹, which is currently being implemented, and whose goals are also aimed at improving the position of students with disabilities. It is necessary to consider the possibility for PWDs to take subjects or attend classes from several related study programs - a combined study program, due to specific preferences and opportunities. Inclusive education implies the application of a multidisciplinary approach at the level of higher education⁸².

⁸² The Higher Education Development Strategy of Montenegro for the Period 2024-2027

- What challenges were encountered in realizing higher education?

- | | |
|--|--|
| ☒ Limited access | ☐ Low number of professionally trained professors |
| ☒ Issues of equity and inclusion | ☒ Insufficient mechanisms to ensure smooth transition from secondary to tertiary |
| ☒ Poor quality programmes | |
| ☐ Poor learning outcomes | |
| ☐ Other: | |

Insufficient infrastructure adapted to students with disabilities and weak application of inclusive policy. Outdated infrastructure in higher education and insufficient places for students in dormitories. Discontinuity between secondary education and university curriculum, poor academic preparation of high school graduates, lack of transition facilitation programmes. Lack of financial resources.

- Please elaborate. Brief quantitative information may be added.

The possibility of increasing the quota of 1% for the application of the principle of affirmative action for persons with disabilities (PWD) to 1.5% or 2% should be considered, bearing in mind that it happened that several PWDs enrolled in the same study programme due to limited opportunities in the choices of conditional studies by the previous type of education (educational profile - most often secondary vocational school) or the inaccessibility of the desired faculty, and that due to complex personal and social circumstances at this level of education, they achieve results that are not competitive for admission to the faculty⁸³.

2.4 Adult education and alternative learning

For reference: Article/Paragraph 4© of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):
- | |
|---|
| ☒ Provision of education for persons who have not received or completed the whole period of their primary education |
| ☒ Provision of literacy programmes |
| ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development) |

⁸³ The Higher Education Development Strategy of Montenegro for the period 2024-2027

- ☐ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

- Please elaborate further on the measures taken:

The Law on Adult Education, Article 8:

Adult education takes place as:

- formal education;
- informal education, that is, learning;
- informal learning;
- self-directed learning.

According to the Law, in Article 14 on non-formal education programmes, it is prescribed that: Non-formal education is acquired through adult education programmes (hereinafter: education programme). Education programmes are intended for:

- 1) training, retraining, additional training, specialization and professional training;
- 2) acquisition and improvement of key skills and key competencies (foreign languages; Montenegrin language for foreigners, use of information and communication technologies; entrepreneurship, etc.);
- 3) acquiring knowledge and skills for civil democracy, environmental protection, sustainable development, family life, successful social integration, raising the quality of life, health education, social skills, the third age of life, etc.

The educational offer for adult education is diverse:

- education programs for the acquisition of professional qualifications
- education programs for acquiring key skills
- education programs for acquiring key competencies
- education programs for acquiring knowledge and skills in various fields and
- education programs for professional development

During 2023, based on the submitted data from the MEIS database and the data from the institutions that were involved in the implementation of the Annual Plan of Adult Education for the 2023, 34,961 participants were involved in various forms of educational activities. From the total number of participants, according to data from the MEIS database, 57 people attended an adapted adult basic education program, 1188 people attended education programs for the acquisition of professional qualifications, 812 people attended education programs for the acquisition of key competencies, education programs for the improvement of key skills attended 32 persons, and programs for professional development 43 persons. Other participants attended education

programs for acquiring knowledge and skills in various fields, motivational programmes, on-the-job training, etc.

- What challenges were encountered in realizing adult learning and education?

☒ Limited access

☒ Limited funding

☒ Issues of equity and inclusion

☐ Poor learning outcomes

☐ Poor quality programmes

☒ Low number of professionally trained educators

☐ Other:

Insufficient information of potential users about available adult education programmes for the acquisition of basic literacy and competences. The need for a greater degree of coordination and consistency when it comes to interdepartmental cooperation among all actors. The lack of a system framework and leadership, especially when it comes to entrepreneurial learning, which is very important from the aspect of employment and self-employment and carries great potential for creating new jobs and developing the business sector. The need to strengthen the structures of informal education. Lack of internal motivation of adults to engage in adult education learning. Unbalanced educational offer within the different regions; Lack of adult education manuals and literature.

The lack of skills remains a significant challenge, where the problems of reskilling and work in professions in which people lack appropriate education/skills are especially highlighted, and the need to establish a mechanism for the evaluation of practical education in professional and higher education⁸⁴.

- Please elaborate. Brief quantitative information may be added.

In 2022, the share of the population aged 15 up to the age of 64 in Montenegro amounted to 66.1% of the total population, which is 409,433 inhabitants.

At the end of 2023 there were 39,942 in the records of the Employment Service of the unemployed. Unemployed with level III and IV education qualification (i.e. completed secondary education) is about 46%.

The number of licensed organizers of adult education by regions shows the highest number in the central region, in total 82, while much lower in the southern region only 17 and in the northern part of Montenegro 31 – total 130. Out of these numbers, only in the capital town Podgorica (the central region), there are 63 licensed organizers, i.e. nearly 50% out of total adult education organizers, while the remaining organizers are distributed by 17 other key towns of the municipalities in the northern, central and southern region (out of 24 municipalities existing in Montenegro).

The statistics on the number of adult education candidates in 2022 and 2023 by gender shows the following: in 2022, 3452 candidates – female 53.7%, male 56.3%, and in 2023, female 52.2 and male 47.8%, in total 3 706 adult education entrants⁸⁵. The programmes with the highest percentage of learners compared to total number of learners include the education programmes for acquiring key competences in *foreign languages* and the education programmes for the acquisition of the

⁸⁴ https://neighbourhood-enlargement.ec.europa.eu/montenegro-report-2023_en

⁸⁵ The MEIS database

vocational qualification and training (some 75% of the overall education programme offer). Hence, in 2023 for example, 4% of adults aged 25-64 participated in learning.

3. Quality education provision and learning environment

For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.

3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☒ State monitoring and inspections
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum
- ☒ Student-teacher ratio
- ☐ School fees (if relevant)
- ☐ Other

The challenge in the education process is ensuring the safety of students - violence among students, violence and unacceptable behavior in the teacher-student relationship⁸⁶.

- Please elaborate on each of the measures taken:

You may include information on policies, protocols or codes of conduct.

The Law on Educational Inspection -Article 1: Inspection supervision regarding compliance with laws, other regulations and general acts in institutions in the fields of: preschool education and education, elementary education, secondary general education, vocational education, higher education and science, education and training of persons with special needs, adult education and of

⁸⁶ Links to the individual opinions issued by the Ombudsman's Office, with recommendations, on the individual complaints, examination procedures and procedures on the Ombudsman's initiative, with respect to the safety of children:
https://www.ombudsman.co.me/docs/1702640406_151123_bp_preporuka.pdf (date of the issued opinion 5.11.2023)
https://www.ombudsman.co.me/docs/1690800940_240723_preporuka_rp.pdf (issued on 24.07.2023)
https://www.ombudsman.co.me/docs/1690788758_050623_preporuka.pdf (issued on 05.06.2023)
https://www.ombudsman.co.me/docs/1685346490_27042023_prpeoruka_pg.pdf (issued 27/04/2023)
https://www.ombudsman.co.me/docs/1675678571_30120222_bp.pdf (issued 30/12/2022)
https://www.ombudsman.co.me/docs/1709629253_07062023_preporuka_os.pdf (issued 07/06/2023)

pupil and student standards (hereinafter referred to as: the institution), is carried out by the ministry responsible for education and science.

The Rulebook on the conditions for the establishment of institutions in the field of education -

Article 1 - this rulebook regulates the detailed conditions for the establishment of institutions in the field of education and upbringing (pre-school institutions, schools, homes of students, that is, students, organizers of adult education, institutes-special institutions and educational centers), in terms of: the number of children, students, that is, participants, space, equipment and teaching aids, as well as standards for space and equipment.

In order to establish an institution, from paragraph 1 of this article, the founder must own or lease space, equipment and teaching aids, in accordance with this rulebook, at least for the period of the duration of the education program

- Decision of the Government of Montenegro on the consolidation of public institutions in the field of primary education, under the section on the *Irrational school network*.

- What challenges were encountered in realizing quality education?

☒ Non-supportive or inadequate learning environments

☒ Low quality educational infrastructure and materials

☒ Violence in schools

☒ Inadequate parental support to education

☒ Cost of education

☒ Long distances to schools

☒ Conflicts or crises

☐ Other:

- Please elaborate. Brief quantitative information may be added.

There are many schools where there are more employees than students, 39 primary schools have less than 50 students and 51 have less than 100 students.

3.2 Education personnel

For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to "substantially increase the supply of qualified teachers".

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

☒ Teacher training is provided without discrimination.

☒ Teachers' average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

- ☒ Initial training and continuous professional development are provided.
- ☒ Minimum standards and qualifications required for the teaching profession.
- ☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.
- ☒ Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.
- ☒ Establishment of performance monitoring systems.
- ☐ Measures taken to increase women in leadership positions in education.
- ☐ Other:

- Please elaborate on each of the measures taken:

Teacher training is provided without discrimination - In accordance with the relevant legal solutions, every teacher has the right and obligation to continuously improve professionally. The Bureau for Education and the Center for Vocational Education accredit professional development programmes that are available to all teachers without distinction and free of charge.

Average teachers' salaries are competitive or at least comparable to those paid in other professions that require similar or equivalent qualifications (at all levels) - Teachers' salaries are competitive with the average salary in Montenegro.

Initial training and continuous professional development are provided - In accordance with legal regulations, initial professional development is provided for a teacher who establishes an employment relationship in an educational institution for the first time in order to independently perform tasks at the appropriate level of education. In addition, continuous professional training is provided according to programs accredited by the Bureau for Education.

Minimum standards and qualifications required for the teaching profession. - Standards and qualifications for the teaching profession are regulated by the Labour Law. According to that Law, in order for a teacher to establish an employment relationship, he must have the appropriate level and profile of education. The majority of teachers in pre-school, primary and secondary education have level VII-1 of the qualification framework (equivalent to 180 only for pre-school and 240 ECTS for others), while the number of teachers with a master's or master's degree is significantly lower despite EU policies, the Bologna process and the Teacher Education Strategy 2017 -2024. In addition, the teacher must have passed the professional exam for working in educational institutions after an internship lasting 9 months, that is, by which he acquires a work license. Also, the teacher has the obligation to renew the license every five years on the basis of attended professional training programs lasting 24 hours.

Establishing a performance monitoring system. - The law defines the probationary work of teachers as a special condition for hiring teachers. In addition, the management of educational institutions are responsible for the system of supervision and evaluation of teachers' work, on the one hand, and on the other hand, the Bureau for Education and the Center for Vocational Education, as umbrella institutions that deal with the evaluation and improvement of the quality of the educational process.

- What challenges were encountered in the education personnel?

- | | |
|---|--|
| ☒ Shortages of teaching staff | ☒ Low quality educational infrastructure and materials |
| ☒ Lack of qualified, trained and motivated teaching staff | ☐ High student – teacher ratio |
| ☒ Lack of training centres | |
| ☐ Other: | |

All programmes for the education of subject teachers are single-subject, e.g. history, geography, physics, mathematics, native and foreign languages, which is not in accordance with European education systems. The shortage of STEM teachers in primary and secondary schools has been highlighted for a long time. In addition to the fact that a small number of students enroll in study programmes for mathematics and physics, the unattractiveness of the teaching profession keeps university students away from the classroom, who prefer to choose jobs in sectors with better working conditions and material status. The gap between the needs of the system and the offer on the labour market is conditioned by the natural outflow of teachers (retirement, illness, death...). It is indicative that the accreditation of the study programme for chemistry is only now in its final phase, which confirms the long-standing inconsistency of the initial education of teachers with the needs of the system. Despite the significant results that have been achieved in the past ten years in the field of early and preschool education in terms of children's inclusion, in some municipalities the insufficient number of educators who work with too large educational groups and the excessive number of children per educator is increasingly expressed, which most directly reflects on the quality of work.

- Please elaborate. Brief quantitative information may be added.

Uneven demographic structure and population migration from the north to the central and south regions, but also a significant increase in the number of migrants from other speaking areas, which directly affects the education sector and the uneven workload of teachers. The ratio in the number of teachers and students in primary education ranges from 1:2.7 (Šavnik) to 1:19 (Budva, Tivat, Podgorica), while in secondary vocational schools it is closer to the OECD average of 1:12/13.

The National Council for Education adopted standards for teachers at the proposal of the Bureau for Education.

General Law on Education and Upbringing - Article 112: Teachers have the right and obligation to improve professionally in various fields through professional development programmes and other forms of continuous professional work of teachers.

Comments from the Protector of the Human Rights and Freedoms (Ombudsman): The teaching staff is faced with inadequate working conditions in relation to the overload - the number of students, working in multiple shifts, unprovided transportation, inadequate support in working with children who have special educational needs.

Montenegro has a challenge in providing teaching staff for certain teaching units - mathematics, physics, chemistry.

The Protector is of the opinion that failure to provide conditions for adequate training of educators entails a series of problems that directly affect the quality of education and the equal availability of quality education for all children. School principals face a series of challenges every day in the organization of classes and the provision of adequate personnel, often due to the deficit of certain qualifications and subject teachers. The lack of conditions for fulfilling obligations stipulated by law,

such as licensing, complicates this problem in many ways, both in the organization of teaching itself and in guaranteeing the quality education of students and meeting the standards that we strive for as a system. The fact that due to inadequate organization or passivity of competent authorities, it was not possible to organize training and licensing of teaching staff, the result was a large number (according to the media, more than 200 teachers) of active teaching staff in classrooms without a legally required work license. This circumstance calls into question the quality of education and the equal availability of education for children in Montenegro.

3.3 Respect for human rights and fundamental freedoms

For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.⁸⁷ Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

☒ Curriculum includes human rights education.

☒ Educational and/or extracurricular activities are organized on human rights education.

☐ Other:

- Please elaborate on each of the measures taken:

General Law on Education, Article 9a on Prohibition of discrimination states that: The institution does not allow: physical, psychological and social violence; abuse and neglect of children and students; physical punishment and personal insults, i.e. sexual abuse of children and students or employees and any other form of discrimination in the sense of the law.

In formal education, **human rights education** is incorporated as part of the content of obligatory subjects. This area is also delivered as separate elective subjects in primary and secondary education. Human rights education is one of the eight themes studied in the Education for Sustainable Education curriculum (ESD).

Some elective subjects from the social sciences which are taught in primary education in school 2024/2025: Civic education (VII or VIII, VIII or IX grades), History of religion (IX grade, 1 lesson per week), The research in humanitarian right (VIII or IX grade, 1 lesson per week), The European Union (VIII or IX grade), Media literacy (VII, VIII or IX grade, 1 lesson per week). In general secondary education obligatory elective subjects are taught: subjects - An individual in a group (III grade),

Sociology of Culture (III and IV grade), Ethics (IV grade, 2 lessons per week), Debate (II grade, 2 lessons per week), Media literacy (II and III grade), History of religion 1 (I and II grade, 1 lesson per week), History of religion 2 (III and IV grade, 1 lesson per week), Civic education (I – IV, 2 lessons per week), European integrations (III and IV grade, 1 lesson per week), and other. The instruction time for the elective subjects is regulated for 1 or 2 lessons per week.

The ESD content is introduced as eight cross-curricular themes in all education levels. The themes of the curriculum are the following: Climate Change, Green Economy (subthemes Food safety, food and sustainable agriculture; Forests; Energy sector; Technology; Tourism), Environmental Protection (Waste; Chemicals management; Noise pollution; Air; Acid rain; Water; Natural renewal and protection of environment (eco-remediation)); Sustainable Towns and Settlements (Raising awareness of values of space; rural patterns of living; Sustainable transport; Emergency action principles); Biodiversity; Health Education; Entrepreneurial Learning, and as a *separate theme Education for Human Rights, with sub-themes: Social, civic, multicultural education and peace education; Gender equality; European integrations (EU); and Consumers education.*

ESD curriculum and Teacher Continuous Professional Development is introduced as:

1. *Education for sustainable development in pre-school school education and care (from 3 to 6 years old kids)*
2. *Education for sustainable development – cross-cutting issue in the curriculum for the primary and upper secondary education*
3. *Education for sustainable development – cross-cutting issue in the curriculum for the secondary educations*
4. *Catalogue of teacher training programmes (2008, 2009, 2010, 2011, 2012, 2013, 2014, 2015, 2016/18)*
5. *Catalogue of teacher training programmes in VET (2014, 2015, 2016, 2017, 2018)*

Under the project “Integration of key competences in education system in Montenegro, which ran from 2019 to 2021, financed through IPA II programme perspective, which included wide number of stakeholders, key regulating and advisory institutions and implementation of a large number of activities, known for its wide-ranging project impact and sustainability of project outcomes, the “Guide for primary and secondary school teachers with guidelines for formative assessment” is intended for teachers to design the school activities in order to deliver competence-based teaching and motivate student-centred learning around eight key competence, among which are broadly incorporated the aspects of human rights education. It opens opportunities for designing curricular, crosscurricular and extracurricular activities, where antidiscrimination principles and human rights educations are deeply embeded. This can be achieved through the development of school action plans and applying the whole-school approach. The eight key competences are: literacy competence, multilingual competence, maths and STEM competence, digital competence, personal, social and learning to learn competence, citizenship competence, enterprenurship competence and competence of cultural awareness and expression⁸⁸.

3.4 Non-state actors in education

For reference: Articles/Paragraphs 2© and 5(1)(b) of the Convention/Recommendation provide for non-state education provision⁸⁹.

⁸⁸ Project website: <https://www.ikces.me/kliucne-kompetencije/>
⁸⁹ Private, faith-based, NGOs, community actors.

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

☒ Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation⁹⁰ explicitly apply to non-state educational institutions. Please specify:

Prohibition of discrimination

Article 9a of the General Law on Education

The institution does not allow: physical, psychological and social violence; abuse and neglect of children and students; physical punishment and personal insults, i.e. sexual abuse of children and students or employees and any other form of discrimination in the sense of the law.

☒ Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education). Please specify:

Prohibition of discrimination

Article 9a of the General Law on Education

The institution does not allow: physical, psychological and social violence; abuse and neglect of children and students; physical punishment and personal insults, i.e. sexual abuse of children and students or employees and any other form of discrimination in the sense of the law.

☐ Legal provisions provide for the rights of the parents/legal guardians for providing religious and moral education for their children. Please specify:

☒ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:

- ☒ Registration
- ☒ State monitoring and inspections
- ☒ Qualifications of teachers
- ☒ Health and sanitation
- ☒ Safety (children learn in a safe environment free from violence or harassment, ☐ including school-related gender-based violence (in and around schools))
- ☒ Infrastructure
- ☒ Curriculum

- ☒ Student-teacher ratio
- ☐ School fees
- ☒ School closures
- ☐ Other

General Law on Education and Upbringing

- Please elaborate:

General Law on Education and Upbringing

Conditions for establishment of institutions

Article 46

An institution can be established if:

- 1) has a sufficient number of children, that is, students;
- 2) an educational programme has been adopted or approved in accordance with this law, or an educational program has been adopted, or a foreign educational program has been approved;
- 3) educational, i.e. teaching and other professional staff are provided, in accordance with a special regulation;
- 4) appropriate space, teaching aids, equipment and other things are provided, in accordance with norms and standards;
- 5) funds for establishment and work are provided;
- 6) hygienic and technical conditions are provided, in accordance with special regulations.

More detailed conditions from paragraph 1 points 1 and 4 of this Article, as well as standards for space and equipment, are prescribed by the Ministry, on the proposal of the National Council for Education.

- What challenges were encountered in non-state education provision?

- | | |
|---|---|
| ☐ Low quality educational infrastructure and materials | ☐ Issues in terms of equity and inclusion |
| ☒ Low number of professionally trained teachers | ☐ Weak government regulatory and monitoring capacity |
| ☐ High student – teacher ratio | |
| ☐ Other: | |

- Please elaborate. Brief quantitative information may be added.

3.5 Digital education

Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion⁹¹.

⁹¹

Please see General Comment No. 25 (2021) of the Committee on the Rights of the Child which covers children's right to education in relation to the digital environment.

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

☐ Digital technology use in education is provided for in the legal framework.

Please indicate the relevant text and provisions:

a) Strategy for Digitalization of Education from 2022 to 2027

b) Comments by the Ombudsman's office: During the period of the spread of the Covid-19 virus, the Protector wrote a series of recommendations and special reports that, among other things, refer to inadequate conditions for the establishment of digital education⁹². According to the Ombudsman analysis report from November 2021 (the publication is provided in the below link), laws in the field of education do not recognize the term online classes.

c) With the new set of the education law reform aimed at the alignment with the EU regulations and improvement of the school and management procedures, mechanisms for the full exercising of the human rights and access to education, the Changes and the Amendments to the General Law on Education which were the subject of the public debate from 30/09/2024 until 20/10/2024, introduce for the first time the provision which regulates that "the procedure for creating, setting up and managing digital educational content on the self-learning platform is prescribed by the Ministry". The terminology "digital textbooks" and "digital contents" become part of the General Law on Education. The results of the public discussion on the draft amendments and changes to the general education law are to be made public during November 2024.

☒ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

☒ Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.

☒ Measures to remove barriers to accessing digital content⁹³, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

☒ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

☒ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

⁹² https://www.ombudsman.co.me/docs/1606301294_18112020-preporuka-mp.pdf
https://www.ombudsman.co.me/img-publications/47/final_covid_07.12.2021.pdf

⁹³ Lack of internet connection, basic infrastructure or devices.

☐ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

- Please elaborate on each of the measures taken:

In the educational system of Montenegro, digital competence (knowledge, skills and attitudes) is developed and integrated through different approaches such as individual subjects, integration into other subjects, cross-curricular topics/key competences and extracurricular activities.

The mastery of basic digital knowledge and skills is mainly achieved through the compulsory subjects of Informatics with technique in elementary school and Informatics in secondary schools and high schools, while advanced knowledge and skills are developed through optional subjects (Introduction to programming, Creating multimedia slide presentations, Computer processing and design text, Algorithms and programming, Business informatics, Media literacy, Computer and Web presentations).

In order to better support the personal and social development of students and to emphasize the importance of developing digital literacy, digital competence is defined and described in more detail in the interdisciplinary curriculum Framework - digital competence, the implementation of which began in the 2020/2021 school year.

This Framework provides an opportunity for stronger development of digital literacy and skills in curricular and extracurricular activities through implementation throughout the entire curriculum.

Through the Montenegrin Framework of Digital Competencies, Montenegro, like most European countries, has explicitly included in its education system goals related to five areas and 21 competencies. These areas of digital competence are: 1) information and data literacy, 2) communication and collaboration, 3) digital content creation, 4) security, and 5) problem solving. These areas are interconnected and build on each other to provide students with a systematic development of general digital literacy. Competences can be easily linked to the teaching content of various subjects in general education, as well as to modules in secondary vocational schools. The areas overlap in some parts, but each area of digital competence has its own specificities that affect the development of certain knowledge, skills and attitudes. Educational outcomes of digital competences have been developed for three levels of education (preschool education, primary and secondary education).

In order to continuously integrate and develop digital competences at all levels of education, the Strategy for Digitization of Education from 2022 to 2027 was prepared, which comprehensively and systematically defines approaches in this area.

The development of the first online Montenegrin platform for digital learning, teaching and collaboration, designed within the broader concept of the Digital School as a form of support to the education system in ensuring the continuity of learning, reducing the gap in access to learning resources and the development of quality and modern education is one of the key improvements in the sphere digitization of the educational system. It is a systemic, sustainable, quality and long-term solution for digital learning, which is complementary to teaching and learning in the regular teaching process and provides additional support to children, adolescents, educational and teaching staff and families. The platform is fully integrated into the existing concept of distance learning in educational institutions, and is available to everyone in the education system.

The platform for learning, teaching, communication and collaboration in a digital environment, Digital School, is designed to bring together resources from various fields for children, parents, educators and professional associates. The part of the platform intended for independent learning is called Digionica, and it provides easy and safe access to quality domestic and foreign educational content.

Special attention during the creation of the framework of the platform was devoted to reducing the digital gap due to social and economic stratification of society, which results in limited access to information technology, and ensuring the same opportunities for all children and young people. The focus of the digital school is precisely on supporting children and families who have difficult access to learning resources.

Teacher training for providing quality and inclusive education in a digital environment (144 two-day seminars) was implemented in the period from December 2021 to the end of June 2022. The pilot programme planned training for 1200 participants through three two-day modules for teachers from 70 schools (60 elementary and 10 secondary schools).

The total number of participants who went through the training programme is 1384, out of which, 1229 participants completed all three modules (six days), 53 participants completed only two modules (four days of training) and 102 participants completed one module (two days).

The main goal of the training was the acquisition of teacher competencies for the implementation of innovative practice characterized by a variety of teaching and learning strategies, which will enable greater individualization of learning and improve cooperation between teachers and students, as well as meeting the individual needs of students.

In order to meet the requirements of modern teaching, during the training, teachers improved their digital competences through the creation of learning concepts that they connected with subject programmes where they directly saw the importance of using digital technologies to improve the teaching and learning process.

- What challenges were encountered in digital education provision (check all that apply)?

- | | |
|---|--|
| ☒ Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | ☒ Limited access to internet and/or electricity |
| ☒ Lack of equity and inclusion in digital learning solutions | ☒ Limited access to hardware (devices, chargers, etc.) |
| ☒ Inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks | ☒ Difficulty in regulating the use of digital education solutions |
| ☐ Other: | ☒ Difficulty in sustainably financing digital education solutions at national scale |
| | ☒ Lack of digital skills development for meaningful use of digital technology in teaching practice |
| | ☒ Disjointed or fragmented solutions that are not centrally systematized or regulated |

Obsolete information system of education, the absence of a digital ecosystem and low level of digital skills and competencies of students and teachers.

- Please elaborate. Brief quantitative information may be added.

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4 Strengthening governance systems

For reference: The Education 2030 Framework for Action states “to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available” (para. 18).

- Please indicate the measures taken in terms of governance (several items may be ticked):
 - ☒ Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.
 - ☒ Monitoring results are made public. Please provide the link:

The Protector of Human Rights and Freedoms of Montenegro (Ombudsman) is an independent institution, whose task is to take measures to protect human rights and freedoms, when they are violated by an act, action or inaction of state bodies, state administration bodies, local self-government bodies and local administration, public services and other holders of public authority as well as measures to prevent torture and other forms of inhuman or degrading treatment and punishment and measures to protect against discrimination. In addition to this function, the Protector also has a broader mission, which is to create awareness about the need for the rule of law; on the complete and consistent protection of the freedoms and rights of citizens and, in general, the creation of legal security for citizens; legal and impartial work of all state bodies, before which citizens exercise their rights, freedoms, obligations and legal interests. Human rights are considered not only rights guaranteed by the Constitution and laws, but also rights guaranteed by ratified international treaties on human rights and generally accepted rules of international law.

The field of education is under the direct competence of the competent ministry - the Ministry of Education, Science and Innovation, and all possible processes are carried out before this second-level body for correcting irregularities.

The Inspectorate for Education plays a major role in monitoring the education process as well as the conditions and availability of education for all children.

Potential disputes are often brought before the Administrative Court.

The Protector of Human Rights and Freedoms is included as a control mechanism in situations where there is a suspicion of a violation of the child's rights in the educational process, and through an examination procedure, he determines the violation and gives an opinion with recommendations for correcting the violation found by the competent authorities and services⁹⁴. The monitoring results are made public through the yearly reports, special reports, analyses, publications etc. <https://www.ombudsman.co.me/Publikacije.php>

⁹⁴ https://www.ombudsman.co.me/docs/1665053392_zakon_o_zastitniku_ci_ljudskih_prava_i_sloboda_crne_gore.pdf

Education inspection of the Ministry of Education, Science and Innovation supervises the work of institutions and has in addition a role in promoting human rights and combating discrimination within the educational system. This includes monitoring for any discriminatory practices that might prevent students from receiving the education they deserve, ensuring equal access to education, supporting the integration of students with disabilities and those from minority groups, and other responsibilities⁹⁵.

- ☐ Monitoring processes are participatory, inclusive and regular.
- ☒ Sector-wide and multisector approach is adopted to education governance.
- ☒ Financial resources are effectively allocated to prioritise the provision of free, quality, public education and are adequately budgeted for in government plans.
- ☐ The decision-making process for the allocation of resources to education is transparent.
- ☒ Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.
- ☒ There is a certain degree of decentralization in favour of local public authorities and autonomy for schools to ensure context relevance of their teaching.

- Please elaborate on each of the measures taken:

The newly adopted **Reform Agenda of Montenegro (2024 -2027)** has determined a goal to create a solid foundation for long-term social and economic development through improving the education system, increasing opportunities for training and professional development, as well as improving the labour market. These reforms are aimed at increasing employment, reducing unemployment, and promoting social inclusion, thus contributing to the construction of a more inclusive, fairer and more resilient society. Also, through various initiatives and programmes, the aim is to provide all citizens with access to quality education and professional training, which is the basis for their active participation in the social and economic life of the country⁹⁶.

The **budget for education is part of the state budget of Montenegro** and is adopted as the Law on Budget at the central level, by the Parliament of Montenegro, on an annual basis. The draft law is subject to public debate where it passes the general public scrutiny and commentary prior to being considered by the Parliament for adoption.

The budget determines the amount of funds which are allocated for the education sector. The financing of education is carried out from the central level with additional budgeting from local authorities. Throughout the past 20 years, a programme budget model is been applied for budget planning. The budget is broken down into subprogrammes for education, science and innovation, which are further divided into specific activity lines. The programme budget which regulates the financing of the advisory, professional, research and quality assurance areas of work of the Bureau for Education Services, Examination Centre, Centre for Vocational Education Centre and the Agency for Higher Education Quality Control and Assurance (development of education, vocational education, quality assurance work etc) is part of the budget. The Government also allocates special funds for education system through the capital budget line for the improvement of school infrastructure. The ways and sources of financing of education and public education institutions of up-to-university level

⁹⁵ <https://www.coe.int/en/web/inclusion-and-antidiscrimination/hf2-montenegro>

⁹⁶ The Reform Agenda of Montenegro (2024 -2027)

are regulated by the General Law on Education. Financing of higher education in Montenegro is regulated by the Law on Higher Education.

In cooperation with UNICEF, with the financial support of EU, the Ministry of Education, Science and Innovation started work on the development of a comprehensive **Strategy for the Reform of Education 2025-2035**. It is the first strategy of this kind to encompass all education levels. It is planned that the Strategy will be adopted by the end of 2024, in order to begin the implementation of the planned activities starting in 2025. Activities in the future comprehensive Strategy will focus on strengthening the capacity of strategic planning within the Ministry, improving equity and enrollment rates at all levels, further improving the quality of education through: the analysis and revision of curricula, individualized approach, smart integration of digital tools and technologies, strengthening and harmonizing the initial teacher education, as well as their professional development, building the capacity of the sector in the context of strengthening monitoring and evaluation functions, as well as using data in a systematic way, providing sufficient resources and economical consumption.

The Bureau for Educational Services and VET centre conduct quality assurance in the educational institutions according to a strictly established procedure in accordance with the respective rulebook and methodology. There are still no separate quality assurance mechanisms developed for human right education exclusively, but Q&A is part of the overall supervision and quality assurance process, and also in relation to the ESD cross-curricular curriculum which includes as one of the ESD themes the Human Rights Education, in the area of the assessment of student achievements.

The Law on Local Self-government ("The Official Gazette of Montenegro", no. 002/18 from 10.01.2018, 034/19 from 21.06.2019, 038/20 from 25.04.2020, 050/22 from 09.05.2022, 084/22 from 01.08.2022), defines the responsibilities of the municipality among which, the following provision is included: "in accordance with the possibilities, the municipality participates in ensuring the conditions and improvement of the activities in the areas of social protection, education, social and child protection, employment, and other areas of interest for local population and exercises the rights and duties of the founders of institutions in the mentioned activities, in accordance with the law".

- What challenges were encountered in terms of governance?

- | | |
|---|--|
| ☒ Budgetary constraints | ☐ Absence of supportive/ inconsistent/obsolete legal and policy environment |
| ☒ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels | ☒ Lack or weakness of monitoring systems – including the lack of reliable data |
| ☐ Poor dialogue with teachers' trade unions | |
| ☐ Other: | |

Frequent staff turnovers, especially in the management staff, and the loss of the institutional memory in several policy sectors.

The lack of a comprehensive strategy for the education sector;

There is still a lack of regular data keeping;

Lack of deeper connection between the information systems in the areas in order to connect education, labour and employment sectors;

Limited budget for the reform activities remains a challenge and the need for increasing participation of the business sector in education.

- Please elaborate. Brief quantitative information may be added.

Frequent organizational and structural changes in the government in the last four years caused frequent staff turnovers, principally at the management level resulting in the loss of the institutional memory in several policy sectors. Various multisectoral reforms have been taking place during the last seven years in order to improve the economic and social situation of the country as precondition for EU support and reaching EU membership status and finally facilitate merging with the EU countries.

According to the *Education System Analysis by UNICEF* covering the period 2015 – 2020: “During the period under review (2015–2020), a set of laws was passed aimed at enhancing quality and access to education, from preschool to secondary education, in line with Sustainable Development Goal 4 (SDG4) on education. In addition, a number of strategies to improve the education system were launched or updated. However, what has been missing so far is a comprehensive strategy for the education sector to include both the overall vision and the main goals and priorities of the education system as a whole. It is necessary to strengthen the capacities for quality planning, budgeting, coordination of implementation, as well as the monitoring and evaluation of policies and programmes”.

Thus, the EU funded project “Quality education for all” launched in January 2024, is aimed at improving overall governance and financing of education, the capacity of education system to provide quality and inclusive education for all children, with a special focus on children with developmental disabilities and Roma and Egyptian children in preschool and the first cycle of primary school and enhance and participation and mobilisation of all actors. The project is being implemented by the Ministry of Education, Science and Innovation in cooperation with UNICEF and EU Delegation in Podgorica and financed the IPA funds. As part of the component Governance and financing, Activity 1.1. envisages the Development of a comprehensive Education Reform Strategy (2025 – 2035) with a clear assessment of implementation costs, a focus on improving the quality, equity, and inclusiveness of teaching and learning, enhancing the management of the education system, and increasing investment in infrastructure and education financing. The first draft of the Strategy has been developed incorporating the key vision of the education system and strategic and the operational goals related to equity and quality of education, support for teachers, improvement of infrastructure and financing, and improvement of the overall management of the education system, as well as digitization of education/digital skills, climate change/green skills, gender equality, prevention of peer violence, social and emotional skills, career orientation, system resilience to risks and disaster risk reduction. During October and November 2024 is planned a broad consultative process on the draft strategy, as well as the conference to officially present the draft of the Education Reform Strategy (2025–2035).

Nonetheless there have been significant improvements in data collection and data keeping in the past seven years carried out by the MEIS information system and the MONSTAT national statistical office, there is still a lack of regular data keeping in particular areas, for example, on trends in the student drop out, especially students from marginalized groups.

There is also a need for much closer cooperation and linking with the education information systems with the information systems of the Ministry of Labour and Employment Agency of Montenegro, in order to create an information infrastructure on the statistics targeting especially marginalised groups of children and adults (NEET, student transition into employment, keeping record on the unemployed in need of employment etc.)

Despite various investments aimed at increasing education funding, the limited budget for reform activities remains a challenge. There is a need to improve cooperation between the government and the private sector in order to provide additional funds and innovations in the education system.

With the project "Mapping of the educational infrastructure" which will contribute to making available to the Montenegrin education system new tools that will contribute to a strategic approach to planning the construction of new facilities for the first time, as well as defining priorities when it comes to investments in the reconstruction and equipping of existing ones objects. The project will be arranged in cooperation with the UNOPS and Ministry of Education, Science and Innovation, with financial support of EIB and the instrument EU Growth Plan for the Western Balkans.

III. Methods used to draw the attention of the various authorities in the country to the instruments

For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☒ Translation of the Convention/Recommendation into the national and possibly local languages⁹⁷
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☒ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☒ Other:

The first UNESCO National Commission was established in 2010 and performed its work until 2021. The second constitution of the Montenegrin National Commission for UNESCO took place in May 2024 and the constituent session was held in July 2024. It follows after the period of several political shifts and institutional and structural changes in the government which happened during the years 2020 - 2024. With the new instituting, the Commission reaffirmed its commitment to the implementation of UNESCO standards and recommendations in all fields, including education. It is strongly dedicated to joint work in the areas in which UNESCO operates, with the intention of jointly promoting and protecting culture, nature, science, education, sports, human rights and all other areas within the scope of UNESCO.

The Commission plays a key role in aligning national interests with international standards and UNESCO initiatives. As a bridge between Montenegro and UNESCO, the Commission works on the implementation of UNESCO programmes and projects, promoting education through the development of educational and scientific programs, as well as engagement in UNESCO's global initiatives and successfully contribute to global goals through local actions.

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